

Natural and Positive, Divine and Human Law

*Sources, distinctions, historical development,
and the Catholic juridical order*

A philosophical, theological, historical, and canonical study

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1 The Question, the Answer, and the Legal Scope

When someone says that an enactment is “only positive law,” that a right belongs to “natural law,” that a norm is “of divine law,” or that the Church may change a rule because it is “human law,” what exactly has been established? Often, less than the speaker thinks. The terms can identify an author, a way of knowing, a form of promulgation, a reason for obligation, a jurisdiction, or a limit on competent power. Unless those questions are separated, a true premise can yield a false legal conclusion.

This study asks how natural and positive law relate to divine and human law; how Greek philosophy, Stoicism, Roman jurisprudence, Scripture, patristic thought, canonistic tradition, and scholastic theology supplied the vocabulary; how the Church differentiated ecclesiastical and civil authority; and how those distinctions operate in the present Catholic juridical order.

Governing thesis

The familiar pairs are useful, but they do not produce four equal species. In the classical Catholic synthesis, natural law is divine in origin and authority while naturally knowable through human reason; divine positive law is freely revealed and historically given by God; and human positive law is enacted or received by competent human authority in civil or ecclesiastical communities. “Human natural law” is therefore not a fourth, coequal source. It can name human knowledge, formulation, adjudication, or application of natural law, but the underlying norm is not created by the knower. Eternal law orders the whole account. Human law makes indispensable determinations for common life, yet no human authority can repeal, dispense from, or transform a divine norm merely by enacting a contrary rule.

1.1 Why the distinction is not academic

The classification changes practical questions. It bears on whether a norm binds every human person or only members of a juridical community; whether an authority may alter or dispense it; whether contrary custom can acquire force; whether civil law is received into canon law; whether a canonical declaration states divine law or creates ecclesiastical discipline; whether a defect concerns moral obligation, juridical validity, liceity, enforceability, or all four; and what forum is competent to decide a dispute. It also disciplines claims about conscience and unjust laws. A person cannot answer those questions merely by attaching the adjective “natural,” “divine,” or “canonical.”

The deeper motivation is freedom ordered to truth. A legal order that treats every enactment as self-justifying cannot explain why official injustice is wrong. An account that distrusts every positive determination cannot sustain courts, contracts, sacraments, offices, due process, or stable common action. Catholic jurisprudence needs both a measure that authority does not create and institutions through which responsible authority determines what the common good concretely requires.

1.2 Reader, genre, and source boundary

This is a discursive canon-law article with philosophical, historical, scriptural, theological, civil-law, and institutional modules. It is written for canonists and civil lawyers entering the neighboring field, clergy and formators, students of Catholic social thought, and serious readers who need a source-first conceptual map. Ancient texts establish ancient arguments, not present law. Magisterial texts establish teaching according to their genre and authority. Codes, promulgated legislation, authentic interpretations, administrative acts, judgments, custom, and particular law have different juridical effects. Modern scholarship supplies textual and historical criticism, not controlling law.

1.3 Legal scope block

Field	Controlling scope	Qualification
Governing bodies of law	The 1983 <i>Codex Iuris Canonici</i> (CIC) for the Latin Church; the 1990 <i>Codex Canonum Ecclesiarum Orientalium</i> (CCEO) for the Eastern Catholic Churches; identified universal, common, particular, proper, liturgical, curial, treaty, and Vatican City norms.	The codes are central but not exhaustive. The Church, the Holy See, the Roman Curia, and Vatican City State are not interchangeable juridic persons or orders.
Language and translations	Official Latin controls for the CIC, CCEO, and Latin promulgating acts. Holy See English pages and identified translations assist the reader. Vatican City legislation is ordinarily cited in the official Italian text.	A convenient web translation is not silently treated as the authoritative text. Ancient translations are witnesses, not substitutes for critical editions where wording is disputed.
Persons and jurisdiction	The universal Church, the Latin Church, the Eastern Catholic Churches <i>sui iuris</i> , their competent authorities and subjects, and civil politics insofar as their law interacts with ecclesiastical law.	Ascription, domicile, territory, office, institute membership, treaty obligations, and particular or proper law can change the applicable norm.
Currentness	Controlling common-law and institutional sources checked through 16 July 2026. The 2022 curial constitution, 2023 Vatican Fundamental Law, 2024 Signatura amendment, 2025 curial regulation and Vatican amendment, and identified 2026 rescript are accounted for.	No later amendment to the core boundary canons discussed here was located in the official code and legislative archives. A negative search is not proof that unpublished or uncatalogued particular law does not exist.
Authority and forum	Legislative, executive, judicial, and teaching authority are distinguished, as are universal, common, particular, and proper competence.	A theological conclusion is not automatically a penal norm; a judgment in one case is not automatically universal law; a curial office does not acquire legislative power merely by issuing guidance.
Case boundary	Examples concern ordinary classification problems: homicide, marriage, worship, contracts and property, religious liberty, conscience, and unjust enactments.	No example adjudicates a real person's rights, criminal exposure, marital status, sacramental status, or duty to obey a named enactment. Those require complete facts and competent advice.

1.4 What the study means by “current governing structure”

The contemporary portion does not merely list offices. It traces a norm from competent lawgiver and promulgation, through interpretation and implementation, to adjudication and possible reception of civil law. It therefore treats the Roman Pontiff and college of bishops, diocesan and eparchial bishops, Eastern synods, particular councils, episcopal conferences, the Dicastery for Legislative Texts, doctrinal competence, the Apostolic Signatura, the Roman Rota, local tribunals, administrative recourse, concordats, and the distinct civil order of Vatican City State.

This is a *source-audited working article*. Independent review by specialists in ancient philosophy, Roman law, medieval canon law, moral theology, ecclesiology, Latin and Eastern canon law, public law, and Church–state relations remains outstanding.

2 The Map: Two Axes, Three Operative Cells, One Source

2.1 The two questions

The natural–positive axis asks principally *how a norm is grounded or given*: does it follow from the intelligible good of human nature and practical reason, or is it posited through a free act of legislation, covenant, authoritative determination, or legally received custom? The divine–human axis asks principally for the *proximate author or source of the norm*: is the norm grounded in divine creation or given by divine revelation, or is its concrete juridical form authored by competent human authority? Legitimate human authority remains dependent on divine providence, but that ultimate dependence does not turn every just human determination into divine positive law. The axes cross, but not symmetrically.

Analytical cell	Ground and mode	Typical examples	Change and competence
Divine natural law	The Creator’s rational ordering, participated in by rational creatures and knowable in principle through reason. It is not created by a human enactment.	Fundamental practical principles; the basic goods and duties that ground justice, human dignity, and the common good.	Human knowledge and application may develop or err; the norm is not repealed or dispensed by human authority.
Divine positive law	God’s free, historically manifested revelation or command, known because God has disclosed it. It may restate natural norms or add truths and obligations ordered to a supernatural end.	The Old and New Law, the revealed covenant, Christ’s evangelical law, and divine constitution insofar as known by revelation.	Human authority receives, teaches, declares, and applies it; human authority does not author or abrogate it. Salvation-historical fulfillment is not legislative repeal by a creature.
“Human natural law”	Not an independent source on the classical account. The phrase can describe human discovery, reasoning, formulation, recognition, or enforcement of a natural norm.	A court recognizing an inherent right; a legislature restating a natural duty; a jurist’s sound conclusion from first principles.	The human formulation may be corrected. Its positive legal form may change, while the natural measure does not depend on that formulation for its existence.
Human positive law	A competent human authority or legally capable community makes a determination for a common good. It includes written and unwritten forms.	Civil statutes and regulations; ecclesiastical canons; particular and proper law; lawful custom; decrees, statutes, and procedural rules.	Ordinarily mutable within competence. It remains limited by higher law, rights, purpose, jurisdiction, procedural form, and the common good.

The decisive asymmetry

Natural law is “human” in the sense that human reason participates in and knows it, not in the sense that humans manufacture its authority. Human law is normally “positive” in the sense that it must be determined and posited. A human legislator can enact a rule that accurately embodies natural law, but the enactment remains human positive law and the moral truth it recognizes remains naturally grounded.

2.2 Eternal law is not a fifth competitor

In the Thomistic synthesis, eternal law is divine wisdom ordering the acts and movements of creatures to their ends. Natural law is the rational creature’s participation in that ordering. Revealed divine law directs humanity, with grace, to the supernatural end and supplies needed certainty and correction. Human law derives from natural law by conclusion or by determination. These are relations of participation, disclosure, and derivation, not four sealed codes stacked on a shelf (Thomas Aquinas, *Summa theologiae* I–II, qq. 90–97, especially q. 91).

Calling eternal law the source of all just law also prevents a category mistake: “divine natural law” does not mean a statute that God once pronounced in audible words. It means that the created rational order has divine authorship and normative intelligibility. Conversely, “divine positive law” does involve free historical revelation, yet it is not irrational will. The same divine wisdom grounds nature and revelation.

“Divine natural law” is this study’s analytical label, also useful for current canonical provisions that speak of natural and positive divine law. It is not Aquinas’s ordinary fourfold terminology: in *Summa theologiae* I–II q. 91, *divine law* ordinarily names the revealed Old and New Law, while natural law is treated separately as rational participation in eternal law.

2.3 *Ius, lex, right, and legal order*

Latin *ius* is broader than enacted *lex*. Depending on period and author, it can mean what is just, a person’s right, a body or order of law, juristic doctrine, or a legally recognized relation. Translating every *ius* as “law” can hide whether a source describes justice, an objective norm, a legal system, or legislation. Greek *nomos* can likewise mean custom, convention, usage, or statute, while *physis* means nature; Aristotle’s *dikaion physikon* is natural justice or right, not yet a scholastic treatise titled “natural law.”

The document therefore uses these controls:

- **law** for a normative rule or ordered juridical body, with its sense made explicit;
- **right** for what is due to a person or the just relation itself;
- **positive** for what is authoritatively posited, not for what is morally good;
- **natural** for rational moral normativity rooted in human nature and goods, not laws of physics or spontaneous preference;
- **divine law** for law having God as source, while distinguishing natural participation from revealed positive law;
- **ecclesiastical law** for law of the Church’s juridical order, without assuming that every ecclesiastical rule is itself divine law.

2.4 Classification belongs to propositions and acts, not slogans

One canon may contain both a humanly enacted declaration of a divine norm and a human disciplinary determination. The classification must therefore identify the proposition under examination. For example, a canon can declare that a bond is indissoluble by divine law, prescribe a human procedure for proving facts about that bond, assign a competent tribunal, and impose a filing period. All appear in an ecclesiastical source; they do not all share the same author, necessity, or dispensability.

Likewise, a civil statute forbidding intentional killing can recognize and specify a natural duty while adding positive definitions, grades, defenses, procedures, and penalties. The natural norm does not itself answer every question about jurisdiction, evidence, sentencing, or appellate time. Positive determination is not a regrettable contamination of natural law; it is how limited communities coordinate action under general principles.

2.5 A six-question classification test

Before assigning a label, ask:

1. **Norm:** What exact proposition, act, right, duty, penalty, or procedure is being classified?
2. **Source:** Is its authority claimed from created rational order, revelation, competent enactment, custom, contract, judgment, or reception of another legal order?
3. **Knowledge:** Is it knowable through reason, known because revealed, or ascertainable because promulgated and legally interpreted?
4. **Subject and forum:** Who is bound, in what jurisdiction, and in what moral, ecclesiastical, or civil forum?

5. **Competence:** Who may interpret, determine, dispense, derogate, adjudicate, or enforce it, and by what form?
6. **Effect of conflict:** Does a contrary rule become morally nonbinding, juridically invalid, illicit, unenforceable, voidable, punishable, or merely subject to strict construction? Those effects are not synonyms.

This test is more reliable than asking only whether a rule “comes from God” or “was made by the Church.” Catholic theology ultimately relates all legitimate authority to God, but that does not make every municipal parking ordinance divine positive law or every diocesan policy immutable.

3 Why Law: Reason, Authority, Freedom, and the Common Good

3.1 Law as rational ordering

Aquinas’s compact definition names law as an ordinance of reason for the common good, made by one who has care of the community, and promulgated (*Summa theologiae* I–II, q. 90, a. 4). Each element excludes a deformation. Mere desire is not law because power wants it. Private advantage is not the public end of law. Good advice does not become juridically binding without competent authority. A secret norm cannot ordinarily coordinate a community as promulgated law.

This definition is analogical across divine and human law. God does not acquire authority from a political community, and natural law is not printed in an official gazette. Yet wisdom, order to good, authority, and sufficient manifestation remain the conceptual core. Human positive law makes the general and shared order practically determinate.

3.2 Derivation by conclusion and determination

Human law can derive from natural law in at least two ways (Aquinas, I–II, q. 95, a. 2). A *conclusion* follows from a more general moral premise: from the duty not to harm comes a prohibition of intentional killing. A *determination* selects one reasonable specification among several: a community fixes a filing period, form of record, side of the road, monetary threshold, or competent office. Conclusions carry more of the natural norm’s necessity; determinations carry the authority of the enactment within a field left open.

Most real laws mix both. A safety code serves life and bodily integrity, uses empirical judgments about risk, chooses measurable thresholds, distributes inspection duties, and creates procedures. Disagreement about one threshold need not deny natural law. Conversely, a legislator’s freedom to choose a threshold does not license choices destructive of the end that gives the regulation its point.

3.3 Why human law cannot prohibit every vice

Human law addresses persons of differing virtue and must preserve a possible common order. Aquinas argues that it should not attempt to suppress every vice, but principally grave harms from which the community must be protected, while leading persons gradually toward virtue (I–II, q. 96, aa. 2–3). That principle is neither moral relativism nor an automatic policy answer. It distinguishes the full field of morality from the subset that coercive public law can prudently regulate for a given community.

The distinction also protects the Church’s legal order from a spiritualized maximalism. Canon law is ordered to ecclesial communion and salvation, but it does not convert every sin into a canonical delict or every counsel into an enforceable precept. Penal typicity, competence, procedure, proof, imputability, prescription, and defense of rights remain moral achievements, not obstacles to holiness.

3.4 Natural law requires prudence, not intuitionism

The first practical principle—good is to be done and pursued, evil avoided—is very general. Human inclinations toward life, family, truth, sociality, and the good known by reason supply basic directions, but concrete judgment

requires facts, virtues, experience, and attention to circumstances. Aquinas expressly distinguishes common principles from conclusions that become increasingly contingent (I–II, q. 94, aa. 2, 4–6). Passion, bad custom, social corruption, and mistaken reasoning can obscure even serious truths.

Therefore “natural law says” is the beginning of an argument, not its conclusion. A responsible claim identifies the relevant good, principle, inferential steps, facts, alternative specifications, authority, and degree of certainty. Revelation can confirm and clarify moral truth, but appeal to revelation in a plural civil forum does not remove the need to articulate publicly intelligible reasons when the claim is also said to be naturally knowable.

3.5 Promulgation, conscience, and coercion

Conscience is the practical judgment that an act is to be done or avoided. It is not a private legislature that makes good and evil, nor is it a mere feeling displaced whenever an official speaks. A person must follow a certain conscience and must form it truthfully. A mistaken conscience may alter subjective culpability without changing the objective good, the external juridical effects of an act, or the competence of a tribunal.

Positive law supplies public notice and institutional judgment, but moral obligation is not exhausted by enforceability. Natural and revealed duties can bind where no human court has competence. Conversely, a valid human rule can bind members of a community even when the underlying choice was not the only morally possible one. The obligation arises through legitimate authority’s determination for a common good.

3.6 Unjust law: distinguish five questions

The maxim that an unjust law is “not law” expresses a defect in law’s focal meaning. It must not be used as an improvised jurisdictional eraser. Aquinas distinguishes enactments contrary to human good through defective end, author, or distributive form from enactments opposed to the divine good; he also considers scandal and social disturbance (I–II, q. 96, a. 4). A complete analysis asks:

1. Is the enactment morally unjust, and with what certainty?
2. Does it lack moral power to bind in conscience, or does a residual duty remain to avoid grave disorder?
3. Is it legally invalid under the positive order’s own constitution, or legally operative until set aside?
4. Does compliance constitute formal or material cooperation with wrongdoing, and are there proportionate reasons or less harmful alternatives?
5. What remedy is competent: interpretation, exception, recourse, litigation, legislative change, conscientious objection, civil disobedience, or refusal?

John Paul II applies the tradition forcefully to laws attacking innocent life while still distinguishing direct participation, conscientious objection, and incremental harm reduction (*Evangelium vitae* 68–74). That application does not license a reader to transfer conclusions mechanically to every disputed regulation.

4 Greek Sources: Nature, Convention, Reason, and Higher Norms

Greek sources do not contain the later Catholic grid. They pose the problems from which it could grow: whether civic command is the final measure of justice; whether “nature” names rational order or brute power; whether unwritten and common norms can judge local enactments; and how general rules reach exceptional cases.

4.1 *Antigone*: mortal decree and unwritten divine norm

In Sophocles’ *Antigone* 450–460, Antigone denies that Creon’s proclamation can override the unwritten and unfailing ordinances attributed to the gods (Greek and English witness). The scene gives enduring dramatic form to the conflict between office and higher obligation. It does not yet establish a theory of natural law. Antigone speaks as a dramatic

character, the higher norms are explicitly divine and unwritten, and the tragedy examines excess, kinship, piety, and political judgment rather than delivering a juristic code.

The witness matters precisely within those limits. It proves that a community's decree and the justice of obeying it were distinguishable problems. Aristotle later cites Antigone when explaining common law according to nature, thereby receiving the dramatic claim into a more analytical vocabulary.

4.2 Plato: "nature" can conceal domination

The conventional/natural contrast is not automatically moral. In Plato's *Gorgias* 482e–484c, Callicles uses nature against convention to defend domination by the stronger (text). He is a provocative interlocutor, not Plato's final spokesman. His argument is a permanent warning: an appeal to "what nature requires" is not self-authenticating. One must explain whether nature means appetite, biological regularity, excellence, rational order, teleology, or a norm of justice.

Plato's *Laws* begins by asking whether constitutions are ascribed to a god or to a human lawgiver (I, 624a–625a), then builds a political theology in which rule should imitate divine rational governance. In Book X, the Athenian first presents the conventionalist and materialist claim that gods and justice are products of art and legislation (888e–890a), then begins his answer by making soul and intellect prior to bodily motion (890d–892c; 896a–899d; Book X). Plato's contribution is not that nature defeats law, but that law becomes intelligible as the political expression of rational order rather than an arbitrary rival to it.

Claims in *Laws* that Zeus or Apollo gave local constitutions are not Christian divine positive law in advance. They belong to Greek civic and philosophical theology. Their value here is historical: the identity of a lawgiver, the rationality of a norm, and a city's received enactment were already separable questions.

4.3 Aristotle: natural justice and legal determination

Aristotle supplies the clearest Greek ancestor of the later natural/positive distinction. In *Nicomachean Ethics* V.7, 1134b18–1135a5, political justice is partly natural and partly legal or conventional. Legal justice concerns matters that could initially be determined in more than one way but, once authoritatively settled, are no longer indifferent (Book V). This is not contempt for convention. It explains why a community needs authoritative specifications even when reason supplies the end.

Aristotle also says that natural political justice can vary in the human sphere. That sentence blocks a simplistic reading in which natural law is a complete list of exceptionless administrative answers. Stability of first principles, variability of material conditions, and fallibility of application can coexist.

Rhetoric I.13 distinguishes a community's particular written or unwritten law from common law according to nature and cites *Antigone*. Its adjacent discussion of equity is equally important: a general formulation can fail to fit an unforeseen case because legislation must speak universally (Book I, 1373b–1374b). Equity does not make the interpreter sovereign over law. It seeks the legislator's rational purpose where literal generality misfires.

In *Politics* III.16, Aristotle contrasts rule by law with appetite and passion, while recognizing that magistrates must judge matters no general law can settle (1287a18–32). The durable inheritance is a partnership: law restrains personal passion, and prudent judgment completes law without pretending that every case was verbally foreseen.

4.4 Stoicism: cosmic reason as common law

Stoicism more tightly joins nature, reason, divinity, and norm. Diogenes Laertius reports that the Stoic life according to nature conforms to the common law identified with right reason pervading all things and associated with Zeus's governance (VII.87–89; text). Cleanthes' *Hymn to Zeus* gives the idea hymnic-philosophical voice: a cosmos ordered through *logos* and common law calls rational creatures to willing conformity. Chrysippus's lost *On Law*, preserved because Marcian quoted it at Digest 1.3.2, describes law as ruler of divine and human affairs and a standard of just and unjust (Digest Book 1).

The later Christian synthesis receives this unity of rational norm and cosmic order but transforms its metaphysics.

Stoic Zeus or immanent *logos* is not simply the transcendent Creator, and conformity to rational nature is not yet the revealed New Law of grace. The line of influence is real without identity.

4.5 What Greece contributes—and does not

Contribution	Enduring question	Boundary
Higher norm	Can a civic decree be judged by a norm it did not create?	<i>Antigone</i> is dramatic divine-law testimony, not a systematic natural-law treatise.
Nature versus convention	Does justice precede enactment, and what does “nature” mean?	Callicles shows that nature-talk can rationalize power; definition and argument remain necessary.
Rational order	Is law an expression of reasoned order or merely the will of the stronger?	Plato’s philosophical theology is not biblical revelation.
Natural and legal justice	Which matters follow from justice and which need authoritative determination?	Aristotle’s natural political justice is not an exceptionless code; natural and legal justice remain distinguishable even though political justice is changeable in human affairs.
Equity	How should a general rule reach an exceptional case?	Equity corrects defective generality according to law’s reason; it is not private cancellation.
Common rational law	Can divine governance, nature, and reason form one normative cosmos?	Stoic sources are reported, fragmentary, and metaphysically distinct from Christian creation theology.

5 Roman Philosophy and Jurisprudence: *Lex*, *Ius*, and Positive Sources

Roman materials arrive by two routes that must not be collapsed. Cicero develops a philosophical account of true law as rational and natural; his philosophical works have their own manuscript and fragmentary transmission. Jurists classify legal orders, institutions, remedies, and formal sources within Roman practice. Justinian’s sixth-century compilations preserve the juristic tradition together with selected philosophical fragments, often placing excerpts from different centuries and conceptual schemes beside one another.

5.1 Cicero: enactment under the judgment of right reason

In *De legibus* I.17–19, Cicero calls law highest reason implanted in nature, commanding what ought to be done and prohibiting the contrary. He develops the commonality of right reason, law, and justice among gods and humans at I.22–23 and 33, and argues that popular enactment cannot make robbery, adultery, or falsification just at I.42–44 (Latin Book I). Book II.8–11 returns to law as rooted in divine mind and rational order before cities and written commands (Latin Book II).

The famous passage in *De re publica* III.33 describes true law as right reason consonant with nature, universal across peoples and times, not repealable by senate or people, under one divine author and judge (fragment). Its transmission must be stated: Cicero’s work survives incompletely, and this passage is preserved through Lactantius, *Divine Institutes* VI.8.6–9; editions number it differently.

Cicero’s account gives later Christian authors a Latin vocabulary in which positive enactments remain genuinely political but can be judged by reason and nature. It does not prove that Roman courts exercised a general power of constitutional review whenever a statute failed Cicero’s philosophical test.

5.2 Gaius: civil law, law of peoples, and sources

Gaius opens his *Institutes* by distinguishing the *ius civile* peculiar to a people from the *ius gentium* established by natural reason and observed among peoples. He then inventories sources operative in the Roman order: statutes, plebiscites, senatorial decrees, imperial constitutions, magistrates' edicts, and juristic opinions (1.1–7; Latin text). This is a major step toward identifying positive law through recognized lawmaking forms.

Gaius's *ius gentium* is not modern international law, and it is not simply Thomistic natural law. It may name institutions common across peoples because human reason produced or recognized them. Some such institutions can still conflict with deeper natural equality. The ambiguity becomes unmistakable in the later compilations.

5.3 The Digest: multiple schemes, not a seamless textbook

Digest 1.1 gathers juristic definitions. Celsus's description of *ius* as an art of the good and equitable, Ulpian's distinction among natural, gentium, and civil law, Papinian's account of praetorian law, and the description of jurisprudence as knowledge of divine and human things stand together (Digest Book 1). They do not form one author's system.

Ulpian there calls natural law what nature teaches all animals, while *ius gentium* is common to human peoples. That animal-wide usage is not the ordinary Catholic meaning of natural moral law, which concerns rational participation. Roman civil law can also add to or subtract from common law, and praetorian law can aid, supplement, or correct the civil law for public utility. These are descriptions of a working legal order as much as abstract categories.

Digest 1.3 collects statements about enacted law: it commands, forbids, permits, punishes, and speaks generally. The excerpt from Chrysippus brings Stoic philosophical law into a juristic anthology. Digest 1.8's distinction between things of divine and human law classifies property regimes; it does not divide every norm by divine and human authorship. Similar words can perform different legal work.

5.4 Justinian: authoritative compilation and conceptual tension

Justinian's *Institutes* 1.1–1.3 gives authoritative pedagogical form to natural, gentium, and civil law; written and unwritten law; and the formal sources of enactment (Latin text based on Krueger; Moyle English translation). It says that natural norms, established by a kind of divine providence, remain firm while civic enactments change. That phrase should not be inflated into the Christian category of revealed divine positive legislation.

The compilation juxtaposes Gaius's bipartite civil/gentium scheme with Ulpian's tripartite natural/gentium/civil scheme. Its achievement is not a perfectly reconciled taxonomy. It transmits a storehouse that canonists and theologians would later order differently.

5.5 Slavery as a stress test

Roman texts sometimes call slavery an institution of the *ius gentium* contrary to nature and affirm natural human equality, while the positive civil order continues to treat enslaved persons as property or without full civil personality (Institutes 1.2.2, 1.3.2; Digest 1.5.4.1 and 50.17.32). Slaves could incur "natural" obligations even where civil actions were unavailable (Digest 44.7.14; Book 44).

This is essential evidence against triumphalism. Natural-law language did not operate as an automatic invalidation rule. It could expose a contradiction, explain an institution, or generate limited legal consequences while grave injustice persisted. The later tradition receives both a critical norm and a warning about how law can acknowledge nature verbally without repairing its institutions.

5.6 The Roman inheritance

Layer	Principal vocabulary	Gift to later tradition	Risk if flattened
Ciceronian philosophy	Right reason, nature, divine mind, true <i>lex</i> .	A rational standard by which enactment can be criticized.	Mistaking philosophy for a Roman judicial invalidity doctrine.
Classical jurists	<i>Ius civile</i> , <i>ius gentium</i> , <i>ius naturale</i> , praetorian law, juristic interpretation.	Multiple relations between common reason, local order, remedy, and equity.	Treating heterogeneous jurists as one scholastic system.
Formal sources	Statute, plebiscite, senate decree, imperial constitution, edict, juristic opinion, custom.	Positive-law attention to competent form and institutional authority.	Thinking form makes every content just.
Justinian's compilation	Written/unwritten and natural/gentium/civil schemes.	A transmitted legal corpus available to medieval civil and canon law.	Reading editorial juxtaposition as conceptual reconciliation.
Concrete institutions	Status, property, contract, obligation, procedure, slavery.	Proof that categories operate in cases and can reveal contradictions.	Assuming a natural label immediately defeated contrary positive law.

6 Scripture and the Fathers: Creation, Covenant, Gospel, and Temporal Order

Christian law cannot be derived from Greek and Roman philosophy alone. Scripture introduces creation by a personal God, covenantal command, sin and grace, the fulfillment of the Law in Christ, the Spirit's interior action, ecclesial authority, and an eschatological end beyond temporal peace. It also preserves the obligation and limit of public authority.

6.1 Law written on the heart

Romans 2:14–16 describes Gentiles who do not possess the Law yet do by nature what the Law requires, their conscience bearing witness (Romans 2). The passage is a major scriptural root for natural-law reflection. It should not be treated as if Paul had inserted a later scholastic definition. Exegetes dispute the precise identity and rhetorical function of the Gentiles; the secure point for this study is that moral accountability is not confined to possession of Israel's written Torah.

Creation texts, the image of God, wisdom literature, and the prophetic appeal to justice likewise support an intelligible moral order. Yet biblical "nature" and philosophical nature are not simply interchangeable. The scriptural order is created, providential, wounded by sin, and directed toward communion with God.

6.2 Revealed law and salvation history

The covenantal commands given to Israel are the paradigm of divine positive law: norms are known because God acts and speaks in history. The Decalogue also expresses central natural-law precepts. The same material can therefore be naturally grounded and positively revealed. Revelation confirms, specifies, and places it within covenant and worship.

Jeremiah promises a covenant with law written upon the heart (Jeremiah 31:31–34). Jesus does not present his mission as arbitrary destruction of the Law but as fulfillment (Matthew 5:17–48); he concentrates law in love of God and neighbor (Matthew 22:34–40) and gives the new commandment of love formed by his own self-gift (John 13:34–35). Paul contrasts external letter and the Spirit without making freedom lawlessness (Rom 8; Gal 5). The New Law is therefore teaching and grace: an interior gift that perfects action, not merely another external code.

Not every precept in an earlier covenantal economy binds Christians in the same juridical form. Explaining fulfillment requires Christology, apostolic teaching, and the Church's received hermeneutic; it is not an example of a human authority repealing divine law.

6.3 Public authority and its limit

Romans 13:1–7 and 1 Peter 2:13–17 direct Christians toward obedience to governing authority for order and good (Romans 13; 1 Peter 2). Acts 5:29 states the limit when apostolic witness is forbidden: God must be obeyed rather than human beings (Acts 5). These are not contradictory proof texts. Authority has a providential vocation; it is neither absolute nor presumptively void.

Jesus' instruction to render to Caesar and to God (Matt 22:15–22) distinguishes claims without providing a complete jurisdictional map. The martyr tradition demonstrates that Christians could honor rulers, pray for them, and refuse idolatrous commands. The refusal was not the assertion that political order is unreal, but that no creature has competence to demand worship.

6.4 Ecclesial norm and apostolic authority

The New Testament also depicts an internal ecclesial order: binding and loosing, apostolic judgment, appointment of ministers, communal discipline, adjudication, and the Jerusalem assembly's decision (Matt 16 and 18; Acts 15; 1 Cor 5–6; the Pastoral Epistles). The vocabulary is not a modern code, but the Church's legal capacity does not begin with imperial recognition or medieval universities. *Sacrae disciplinae leges*, promulgating the 1983 CIC, expressly places canonical discipline within this saving and ecclesiological horizon (promulgating constitution).

6.5 Early Christian moral and juridical patterns

The *Didache* organizes Christian conduct through two ways, life and death, joining scriptural command, catechesis, worship, and community order (text). Apologists and Fathers receive *logos* vocabulary while re-centering it on creation and Christ. Conciliar canons, episcopal letters, penitential practices, and liturgical norms gradually form a positive ecclesiastical corpus. Their authority always depends on author, reception, territory, date, and later law; an early exhortation is not automatically a universal canon.

6.6 Augustine: eternal measure and temporal peace

In *De libero arbitrio* I.5–6, Augustine distinguishes eternal law from temporal law and judges that nothing in temporal law is just unless derived from the eternal measure. His compact claim that an unjust enactment lacks the full character of law later enters Aquinas's treatment of obligation. The text also recognizes why temporal law does not punish every disordered desire: its public task is bounded.

City of God XIX.17 presents the pilgrim heavenly city using and obeying the diverse laws by which earthly peace is maintained, so far as they do not impede worship of the true God (Book XIX.17). The two cities are communities defined by loves, not Church and state as coextensive institutions. Augustine therefore cannot be reduced either to theocracy or to a modern wall of separation.

Augustine's own position on coercion developed amid the Donatist conflict. In *Letter* 93.16–17, he says that he had opposed coercing anyone into Christian unity but changed his judgment after observing the effects of imperial pressure. *Letter* 185.26 defends fines and exile as medicinal measures, while noting that no capital penalty was imposed; he also acknowledges that no one becomes good unwillingly. This history prevents selective use of one early sentence as the whole patristic doctrine of religious liberty. It illustrates the larger lesson: a source's principles, prudential applications, institutional setting, and reception must be distinguished.

6.7 From persecution to Christian empire

Imperial toleration, patronage, councils, and legislation created overlapping jurisdictions and new temptations. Bishops judged ecclesiastical matters and sometimes civil disputes; emperors convoked councils, enforced settlements, and intervened in doctrine; ecclesiastical canons and Roman law affected marriage, property, status, and public worship. Eastern ideals later called "symphony" and Western accounts of distinct powers both sought ordered cooperation, but their practice included domination and conflict.

The Church’s historical question was never simply whether divine and human law should be “separated.” It was which authority possessed competence over which matter, how a matter could have both spiritual and temporal aspects, and what should occur when commands conflicted. Those questions lead to Gelasius, Gratian, and the medieval jurists.

7 Gratian, the Canonists, and Aquinas: Ordering the Inheritance

7.1 Gratian begins with a productive tension

The *Decretum* begins: humankind is ruled by two things, natural law and customs. Gratian explains natural law through the Law and Gospel, especially doing to another what one wishes done to oneself; by “custom” he includes written and unwritten human law (D.1 dictum before c.1; online Friedberg text). D.1 c.1, quoting Isidore’s *Etymologies* V.2, then says that all laws are divine or human: divine law consists by nature, human law by customs (D.1 c.1).

This opening does not yield a polished two-by-two. Gratian’s “natural law” is deeply biblical, while D.1 cc.6–9 imports Isidore’s Roman-derived taxonomy: c.6 lists natural, civil, and gentium law; cc.7–9 define them (D.1 c.6; c.7; c.8; c.9). The work’s purpose is the concord of discordant canons. Its juxtaposition becomes a research program for the decretists.

Gratian also receives criteria for human law: it should be honorable, just, possible, fitting to nature and local custom, adapted to time and place, necessary, useful, clear, and ordered to common utility rather than private advantage (D.4 c.2; text). Positive form is necessary but not self-justifying.

7.2 Canonistic refinement

Rufinus’s twelfth-century *Summa Decretorum* distinguishes a natural power implanted in rational humans from Roman usage that extended *ius naturale* to animals. He relates postlapsarian social ordering, the *ius gentium*, the Decalogue and Gospel, and apostolic or successor canons addressing institutional details (ed. Heinrich Singer, 1902, pp. 4–10; scan). This shows canonists actively interpreting inherited categories rather than copying them unchanged.

Medieval *ius commune* brought canon and revived Roman law into conversation. Decretals, conciliar canons, custom, papal judgments, juristic gloss, and civil law formed related but distinct bodies. The distinction between divine and merely human law became especially important for papal competence, custom, dispensation, marriage, sacramental order, and the limits of legislation. Canonists did not treat a creature as simply able to abrogate God’s law, but they disputed which norms were natural or divinely positive, the reach of papal power, and whether an apparent “dispensation” was instead interpretation, application of an exception, or dispensation in a looser vocabulary. Merely ecclesiastical law was in principle mutable by competent authority for just cause; classification supplied the contested premise rather than an automatic answer.

7.3 Aquinas’s architecture

Aquinas does not merely add labels. Questions 90–108 of the *Summa theologiae* relate law to beatitude, virtue, grace, prudence, community, and salvation:

Form of law	Aquinas’s account	Mode of access	Principal function
Eternal law	Divine wisdom’s governance of the whole created order.	Known perfectly by God; creatures participate according to their mode.	Source and measure of every just ordering.
Natural law	Rational creatures’ participation in eternal law.	Practical reason grasps first principles and reasons toward conclusions.	Directs human action toward intelligible goods and supplies the basis of human law.
Human law	Particular determinations derived from natural law for a political community.	Promulgated enactment and custom, interpreted by reason and authority.	Coordinates common action, restrains grave wrongdoing, and educates toward virtue.

Form of law	Aquinas's account	Mode of access	Principal function
Divine law	Law revealed by God, Old and New, needed because humanity has a supernatural end, uncertainty, hidden acts, and the limits of human law.	Revelation received in faith; the New Law is principally grace of the Holy Spirit and secondarily written teaching.	Directs to beatitude, judges interior acts, supplies certainty, and leaves no grave evil wholly unregulated.

The sources are I–II q. 90, q. 91, q. 93, q. 94, and q. 95. Old and New Law receive extended treatment in qq. 98–108.

The scheme shows why the grid is asymmetric. Natural law belongs under divine source in this study's analytical grid, but its mode of access is natural reason; Aquinas ordinarily reserves *divine law* in this fourfold discussion for the revealed Old and New Law. Human law is positive determination. Revealed law is divine and positively given, but its New Covenant fulfillment is not reducible to an external enactment. Eternal law is the source that prevents the remaining forms from becoming competitors.

7.4 Change, custom, dispensation, and equity

Aquinas treats human law as genuinely changeable when alteration serves the common good, yet warns that change itself harms the stabilizing force of custom (q. 97, a. 2). Custom can interpret or acquire legal force within proper conditions because a people's repeated action can express juridical consent (q. 97, a. 3). Dispensation applies a common rule differently where its reason would fail in a particular case; it belongs to one entrusted with the community and cannot be arbitrary favoritism (q. 97, a. 4).

Equity or *epikeia* concerns exceptional fidelity to law's rational purpose where literal application would harm the common good (II–II, q. 120). It is not a standing permission for private preference. Modern canon law institutionalizes related concerns through interpretation, dispensation, administrative recourse, canonical equity, and judicial application. Those positive forms matter because private certainty about an exception can itself be mistaken.

7.5 Early modern elaboration

The Council of Trent supplies concrete legislative tests. Session VII, canon 8 on baptism, rejects the claim that baptized persons are free from observing the Church's precepts; Session XXIV, canon 4 on matrimony, affirms the Church's power to establish diriment impediments. The decree *Tametsi* then enacts a form requirement for marriage where promulgated. Doctrine about ecclesiastical legislative competence and a particular disciplinary determination thus appear together without making every discipline divine or immutable (Session VII; Session XXIV English witnesses).

Francisco Suárez's *De legibus ac Deo legislatore* (1612) gives an extensive account of law, legislator, obligation, natural law, *ius gentium*, civil law, canon law, custom, privilege, and divine law (especially I.5–12; II; III–IV; VII–X). He emphasizes law as an act of a superior's will informed by reason and promulgated to a community. The work mediates scholastic categories into early modern debates about sovereignty and nations without reducing law to sheer command.

Second-scholastic reflection by Vitoria, Suárez, and others also develops the *ius gentium* amid questions of peoples, war, commerce, and political authority. It should not be retrospectively equated either with Gaius's category or with contemporary treaty law. The same term migrates through different legal worlds.

7.6 The central medieval achievement

The medieval synthesis does not eliminate disagreement. It gives later law a disciplined set of distinctions: source versus promulgation; divine declaration versus human determination; immutable first principle versus contingent conclusion; common law versus equitable application; universal authority versus particular competence; moral wrong versus juridical delict; and spiritual versus temporal end. Those distinctions make a legal tradition capable of reform without claiming that every change is doctrinal reversal or every inherited rule is divine.

8 How the Church Differentiated Ecclesiastical and Civil Order

No single history of “separation” is adequate because the word names different things: distinction of offices; distribution of jurisdiction; institutional independence; disestablishment; religious freedom; noninterference; cooperation; privatization of religion; or a claim that civil law has no moral measure above enacted will. The Church has accepted some meanings, developed others, and rejected still others.

8.1 The Gelasian distinction

Pope Gelasius I’s 494 letter to Emperor Anastasius states that two realities principally govern the world: the sacred authority of pontiffs and royal power. Each has a proper competence; the emperor depends upon religious ministers in divine matters, while they obey imperial laws in matters of public order. The text survives in Gratian at D.96 c.10 (*Duo sunt*). A related Gelasian text says that Christ distinguished the offices so that neither emperor would usurp pontifical functions nor pontiff imperial ones (D.96 c.6; text).

This is a jurisdictional differentiation within one Christian moral world, not a modern theory of privatized religion or two morally self-sufficient sovereignties. The powers are related, their ends differ, and overlapping matters create asymmetry and dispute. The importance of Gelasius is that unity under God does not require identity of office.

8.2 Medieval plurality and conflict

Medieval Latin Christendom contained overlapping jurisdictions: papal and episcopal courts, imperial and royal authority, feudal and municipal law, religious institutes, universities, guilds, and local custom. The Investiture Contest concerned who could constitute and symbolize ecclesiastical office as much as a general Church–state theory. Canonists and civilians developed corporate personality, jurisdiction, due process, consent, representation, marriage law, benefices, and remedies while arguing about boundaries.

The image of two swords could support different allocations and sometimes maximal claims. Papal plenitude of power in spiritual matters did not make every civil administration an ecclesiastical act, while rulers repeatedly sought control over appointments, property, courts, and worship. Practice included cooperation, privilege, coercion, and abuse. The period should be studied as juridical pluralism under a shared theological horizon, not as a simple age before “separation.”

8.3 Confessional states, sovereignty, and the modern problem

Reformation divisions, territorial churches, wars, expanding state sovereignty, colonial projects, and modern administrative power changed the problem. Religious settlement was often attached to the ruler or polity, while toleration gradually developed through mixed motives and uneven rights. The Papal States also joined spiritual primacy and temporal sovereignty in one office exercised under distinct titles.

Modern legal positivism sharpened a conceptual question: can the validity or identity of law be explained through social sources without claiming that every valid enactment is morally just? Different positivists answer differently, and the school must not be caricatured as approval of tyranny. The Catholic objection is directed principally against a complete account in which enacted will exhausts law’s authority or moral obligation. Positive-law criteria can identify what officials will treat as law even where natural-law analysis judges the enactment gravely unjust.

8.4 Nineteenth-century confrontation

Pius IX’s *Quanta cura* and the appended *Syllabus* (1864) reject state naturalism and religious indifferentism, popular will as the supreme norm independent of divine and human right, and civil law’s independence from natural and divine sanction (official Latin). The confessional horizon must be stated rather than softened: the *Syllabus* condemns propositions approving separation of Church and state (no. 55), denying the continuing expediency of Catholicism as the sole state religion with other cults excluded (no. 77), approving public worship for non-Catholic immigrants (no. 78), and praising full public religious liberty in a context joined to indifferentism (no. 79). Because the list

points back to the circumstances and arguments of earlier documents, it is not a context-free positive constitution; nevertheless, its juridical default differs materially from the later Council’s dignity-centered account of civil immunity.

Leo XIII’s *Immortale Dei* (1885) teaches that ecclesiastical and civil powers are each supreme within a defined order and require concord where the same persons or matters are related to both ends (nn. 13–14; text). It rejects subordination of the Church and a separation joined to religious indifferentism, while acknowledging legitimate forms of government and the civil order’s proper competence. *Libertas* (1888) grounds natural law in eternal reason, treats human law as conclusion and determination, and denies morally binding force to commands opposed to right reason (nn. 6–10; text).

The loss of the Papal States in 1870 and the Lateran settlement of 1929 change the institutional setting. The Holy See’s international sovereignty and a small territorial Vatican City State secure independence without restoring the former political domain. Treaty and concordat become important legal forms for coordinating distinct orders.

8.5 From toleration to a right of civil immunity

Pius XII’s 1953 address *Ci riesce* distinguishes objective truth from the prudential question whether public authority must always prevent religious or moral error. Positive international law specifies natural law, and toleration can be required for a higher common good (Italian text). This is a bridge, not yet the Second Vatican Council’s full formulation.

Dignitatis humanae grounds a civil right to religious freedom in the dignity and social nature of the person: within due limits, no human power may coerce a person to act against conscience or prevent religious action (nn. 2–4; text). Number 1 expressly leaves untouched the traditional doctrine on the moral duty of persons and societies toward the true religion. Under n. 2, however, the civil right rests on human nature rather than subjective correctness; it persists even when someone fails the duty to seek or adhere to truth, subject to the due limits of just public order. Civil immunity therefore does not make truth subjective. The declaration does not prescribe disestablishment as the only constitutional model: n. 6 allows special civil recognition of one community if the freedom and equality of all are effectively protected.

The Council candidly acknowledges that conduct contrary to the Gospel spirit sometimes occurred in the Church’s history (n. 12). That admission matters. Patristic and later arguments for coercive correction cannot be omitted from a serious development account.

8.6 Autonomy, independence, and cooperation

Gaudium et spes 36 distinguishes legitimate autonomy of created things and temporal societies from a false autonomy that denies dependence on the Creator. Section 74 places civil authority within a moral and juridical order. Section 76 teaches that the political community and the Church are autonomous and independent in their own fields while serving the same human vocation under different titles and cooperating for the common good (text). It also distinguishes action Christians take as citizens from action taken in the Church’s name.

This is not moral isolation. The Church may judge political matters when fundamental rights or salvation require it, while respecting temporal competence and legitimate pluralism in policy. Civil authority does not administer sacraments or determine doctrine; ecclesiastical authority does not claim technical competence over every economic, scientific, or administrative choice.

8.7 A calibrated development account

Meaning of “separation”	Historical trajectory	Present Catholic judgment	Limit
Distinction of office	Apostolic practice, Gelasian differentiation, medieval jurisdiction, modern institutional law.	Necessary: ecclesiastical and civil authority are not the same office.	Matters can overlap under different aspects; distinction does not eliminate cooperation.

Meaning of “separation”	Historical trajectory	Present Catholic judgment	Limit
Institutional independence	Repeatedly asserted against imperial, royal, and state control; legally secured through rights, concordats, and Holy See sovereignty.	Affirmed in each order’s proper field.	Independence is not exemption from every generally applicable just civil law.
Civil religious freedom	Early toleration and noncoercion strands coexist with coercive episodes; nineteenth-century confessional default develops into Vatican II’s dignity-grounded immunity.	Required within due moral and public-order limits; equal protection must be effective.	No single establishment clause is prescribed; truth and civil immunity remain distinct questions.
Moral independence of positive law	State supremacy and voluntarist positivism intensify the claim.	Rejected: civil and ecclesiastical enactments remain answerable to objective moral order.	Juridical validity within a system and moral obligation still require separate analysis.
Privatization or exclusion of religion	A recurring modern political program.	Rejected where it denies persons or communities public religious freedom or the Church’s proper mission.	Public contribution does not authorize coercion or clerical control of every temporal choice.

Continuity is clearest in the principle that no one may be forced to embrace the faith against his will, and in the rejection of indifferentism, absolute state supremacy, and civil law detached from moral truth. It is not a historically uniform rejection of all religious coercion: coercive correction of baptized dissenters and restrictions on public religious exercise remained part of earlier practice and theory. Development is genuine in the juridical center of analysis: the Council articulates a right of persons and communities to civil immunity rather than treating non-Catholic public exercise chiefly as tolerated error. A responsible history neither declares contradiction by slogan nor pretends the formulations and institutional defaults never changed.

9 The Contemporary Doctrinal Synthesis

9.1 The Catechism’s ordered plurality

The *Catechism of the Catholic Church* 1950–1986 offers the clearest contemporary map. All law finds its first and final truth in eternal law. The expressions of moral law are interrelated: eternal law; natural law; revealed Old and New Law; and civil and ecclesiastical laws (1950–1953; “The Moral Law”). The list is coordinated rather than competitive.

Natural law expresses the original moral sense by which reason discerns good and evil; it is universal, stable in first principles, and the basis of fundamental rights and duties. Its application varies, and its conclusions can be obscured by sin and cultural conditions (1954–1960; “The Natural Moral Law”). Revelation does not make nature unintelligible; it gives fallen humanity needed light and grace.

The Old Law prepares for Christ and includes moral, ceremonial, and juridical precepts; the New Law fulfills and surpasses it and is principally the grace of the Holy Spirit, expressed in Christ’s teaching and the apostolic catechesis (1961–1974). Human civil and ecclesiastical laws belong within this economy, not beside it as sovereign rivals.

9.2 *Veritatis splendor*: participation, universality, and embodiment

John Paul II’s *Veritatis splendor* 35–53 responds to theories that detach freedom from truth or oppose nature and reason. Human reason participates in eternal law; natural law is not a biological code imposed from outside but rational participation by the embodied person (text). Universality does not erase singularity. Practical judgment applies

stable moral truth to concrete acts; the sustained treatment at nn. 79–83 explains why intention or circumstances cannot transform an intrinsically evil moral object into a good choice.

This teaching protects both poles. Objectivity does not mean that every disputed policy is directly deduced from a first principle. Contextual judgment does not mean that the moral object is created by preference. Positive law needs prudence, and prudence is not permission to redefine the good.

9.3 Natural law as a public language

The International Theological Commission’s 2009 *In Search of a Universal Ethic* surveys wisdom traditions, Greco-Roman sources, Scripture, Christian developments, moral experience, first principles, historicity, political society, and Christological fulfillment (text). It is an expert theological commission document, not an act of the Magisterium with the authority of an encyclical. Its value is methodological: natural-law reasoning seeks common moral intelligibility rather than using “nature” as an unexplained confessional password.

Public reason need not exclude theological motivation from citizens. *Gaudium et spes* 43 and 76 preserve both Christian responsibility and legitimate plurality in temporal judgments. The same natural principle can support more than one reasonable positive specification. Catholic social teaching supplies ends and principles—dignity, solidarity, subsidiarity, common good, preferential concern for the vulnerable—without becoming a complete municipal code.

9.4 Church teaching and Church legislation

The teaching office and the power of governance are related but not identical. The Magisterium authoritatively teaches faith and morals; a legislator enacts juridical norms; an executive authority applies law; a tribunal decides controversies. One papal document can exercise more than one function, but its genre, words of enactment, approval, promulgation, subjects, and effective date determine the legal effect.

This yields four recurring patterns:

- A doctrinal document may teach a divine norm without creating a new canonical penalty.
- A canon may declare a divine norm and add human procedural protections.
- A disciplinary law may rest on theological reasons while remaining mutable ecclesiastical positive law.
- A curial explanation may be authoritative guidance without being an authentic interpretation having the force of law.

The 1983 CIC itself distinguishes these functions. Canon 747 §2 claims the Church’s competence to announce moral principles concerning the social order and judge human affairs insofar as fundamental rights or salvation require it; canons 749–754 calibrate forms of teaching and assent (CIC 747–755). Those canons should not be read as if every prudential ecclesiastical statement were a universal legislative command.

9.5 Natural right and positive recognition

A positive constitution can recognize a right grounded in human dignity. The state does not create the person’s dignity, yet its legal recognition is not redundant: it supplies jurisdiction, standing, remedies, procedures, institutional duties, and limits on officials. The right is natural in ground and positive in juridical form.

Dignitatis humanae illustrates the pattern. Religious immunity is grounded in the nature and dignity of the person and is to be recognized in constitutional law as a civil right. Positive recognition makes a naturally grounded claim legally actionable. Limits must themselves be ordered by objective moral norms and just public order, not majority discomfort.

9.6 The limits of conscience language

Conscience does not confer immunity from every external consequence, and law cannot simply compel interior faith. *Dignitatis humanae* distinguishes the moral duty to seek truth from civil immunity against coercion. *Evangelium vitae* distinguishes resistance to gravely unjust commands from the prudential analysis of cooperation and harm reduction. A legal system may establish procedures for conscientious objection; their scope is a positive-law question informed by, but not identical to, the moral claim.

For a concrete case, one must identify the act required, moral object, degree of participation, causal and institutional setting, available alternatives, rights of others, competent exemption process, and consequences in each forum. “My conscience says” and “the law says” are both incomplete without that analysis.

9.7 What remains disputed

Catholic thinkers disagree about the best philosophical formulation of natural law, the relation of basic goods to metaphysics, the status of *ius gentium*, the scope of legal validity language, and many prudential applications. Thomistic, Augustinian, personalist, new-natural-law, virtue-jurisprudential, and classical juridical approaches overlap without becoming identical. The Church’s teaching does not settle every intramural philosophical dispute.

The study’s taxonomy is therefore a governing grammar, not a machine. It identifies burden of proof and competent questions. It does not remove the need for exegesis, history, moral theology, empirical knowledge, legislation, or adjudication.

10 Current Canon Law: Orders, Sources, and Divine-Law Boundaries

10.1 Two codes, one communion, different canonical traditions

The 1983 CIC was promulgated on 25 January 1983 and entered into force on 27 November 1983. Its canons concern only the Latin Church unless another rule expressly reaches farther (CIC c. 1; CIC 1–6). The 1990 CCEO was promulgated on 18 October 1990 and entered into force on 1 October 1991. It concerns all and only the Eastern Catholic Churches unless it expressly governs relations with the Latin Church (CCEO c. 1; *Sacri canones*).

Official Latin controls. The Holy See’s English CIC pages are working translations, and English CCEO editions are translation aids. Neither code is a frozen 1983 or 1990 artifact. Later papal legislation, authentic interpretations, applicable liturgical law, particular and proper law, concordats, custom, and special norms must be checked.

10.2 The codes are not the entire legal order

Source or form	How it operates	Illustrative locus	Necessary control
Divine law declared in canonical form	A canon recognizes or protects a norm the Church receives rather than authors.	CIC cc. 129, 330–331, 1055–1056, 1075, 1141.	The precise divine proposition must be distinguished from added human procedure or terminology.
Universal law	Papal or collegial law governs the whole Church, a Church, or defined subjects.	CIC and CCEO; apostolic constitutions and <i>motu proprio</i> acts.	Competence, promulgation, effective date, later amendment, and subject scope control.
Particular and proper law	Competent local, synodal, institute, or office-specific authority determines matters within higher law.	Diocesan/eparchial law, Eastern synodal law, institute constitutions, tribunal proper law.	A lower legislator cannot derogate from higher law beyond granted competence.

Source or form	How it operates	Illustrative locus	Necessary control
Custom	A legally capable community introduces a practice with intent to create law and the legislator approves it according to law.	CIC cc. 23–28; CCEO cc. 1506–1509.	No custom contrary to divine law can acquire force; reprobated and unreasonable customs fail.
General norms and instructions	Legislative decrees are laws; executive decrees implement law; instructions explain execution for executors.	CIC cc. 29–34 and Eastern counterparts.	Executive authority cannot legislate without a grant; an instruction cannot derogate from law.
Singular administrative acts	Decrees, precepts, rescripts, privileges, and dispensations decide or favor concrete cases.	CIC cc. 35–93.	Competence, facts, reasons, rights, notification, interpretation, and recourse matter; the act does not become universal law.
Judgment and jurisprudence	Tribunals adjudicate cases; jurisprudence and curial practice can help fill nonpenal gaps.	CIC cc. 16 §3, 19, 1417–1445.	A sentence ordinarily binds the case, not the universal Church; penal gaps cannot be filled by analogy.
Received civil law and agreements	Canon law gives defined civil norms canonical effects or preserves treaties.	CIC cc. 3, 22, 1290; CCEO cc. 4, 1034, 1504.	Reception fails where contrary to divine law or a contrary canonical provision; agreement and jurisdiction must be identified.

10.3 Promulgation, subjects, and interpretation

CIC canon 7 says a law is established when promulgated. Universal ecclesiastical laws are ordinarily promulgated in the *Acta Apostolicae Sedis* and usually receive a three-month *vacatio*; particular law follows the legislator's mode and ordinarily a one-month *vacatio* (c. 8). Merely ecclesiastical laws ordinarily bind baptized or received Catholics who have sufficient use of reason and, absent another provision, are at least seven years old (c. 11). Territorial and personal scope then require canons 12–13 (CIC 7–22).

Authentic interpretation belongs to the legislator or one entrusted with that power (c. 16). If rendered in the form of law, it has legal force and must be promulgated; a judicial sentence or administrative act in a particular matter ordinarily binds only the persons and matter decided. Canon 17 directs interpretation through text and context, parallel places, purpose, circumstances, and the mind of the legislator. Penal, rights-restricting, and exceptional laws receive strict interpretation (c. 18). In a nonpenal gap, canon 19 permits analogous laws, general principles applied with canonical equity, Roman Curia jurisprudence and practice, and common and constant learned opinion.

The CCEO provides related but not identical norms, including c. 1498 on interpretation and c. 1501 on nonpenal gaps. CCEO c. 1501 expressly includes canons of synods and Fathers, legitimate custom, general principles with equity, ecclesiastical jurisprudence, and common and constant canonical doctrine (CCEO 1007–1546). Eastern sources must be read within their own tradition rather than as paraphrases of Latin canons.

10.4 The divine-law guardrails

Several canons make the taxonomy operational:

- No custom contrary to divine law can acquire the force of law (CIC c. 24 §1; CCEO c. 1506 §2).
- Civil law receives canonical effects only where canon law yields or refers to it and only insofar as it is not contrary to divine law and canon law does not provide otherwise (CIC c. 22; CCEO c. 1504).
- A dispensation is the relaxation of a *merely ecclesiastical* law in a particular case (CIC c. 85; CCEO c. 1536). Laws defining essentials of juridic institutions or acts are not dispensable under CIC c. 86 merely because they are ecclesiastical.

- Prescription does not run against rights and obligations of divine natural or positive law (CIC c. 199, no. 1; CCEO c. 1542).
- In marriage, only the supreme Church authority authentically declares when divine law prohibits or invalidates marriage and establishes other impediments for the baptized (CIC c. 1075). Lower authority may prohibit or dispense only within the competencies and limits of cc. 1077–1078.
- A ratified and consummated sacramental marriage cannot be dissolved by any human power or cause other than death (CIC c. 1141). Procedures for determining whether those facts exist are human canonical law serving the divine-law claim.

These rules do not imply that identifying divine law is easy or that every code phrase containing *divine* is self-interpreting. They allocate consequences after the source has been responsibly determined.

10.5 Merely ecclesiastical does not mean trivial

The adjective “merely” distinguishes source and competence, not importance. A procedural deadline, canonical form, holy day, electoral rule, penal prescription, or administrative safeguard can bind gravely or affect validity because competent authority has ordered the community. Mutability is not optionality.

Conversely, attaching strong theological reasons to a discipline does not make it divine law. The test concerns whether the Church understands herself to have received the norm as divinely given or to have enacted a fitting determination under divinely conferred authority. Often the reasons are theological and the juridical specification is human.

10.6 Amendment and currentness

The official code archive must be read with later acts. Material recent examples include *Pascite gregem Dei* (2021), which replaced CIC Book VI effective 8 December 2021; *Recognitum Librum VI* (2022), which amended CIC c. 695 §1; *Competentias quasdam decernere* (2022), which reallocated selected competencies; *Vocare peccatores* (2023), which amended twenty-two CCEO penal canons and c. 1152; *Expedit ut iura* (2023), which changed a recourse period; *Munus Tribunalis* (2024), which amended the Signatura’s proper law; and a 2026 rescript concerning competence under CIC c. 699 §2. None changes the central natural/positive/divine/human boundary canons identified above, but they demonstrate why a printed base code is not an adequate currentness audit.

The official papal legislation, code archive, and authentic-interpretation register were checked through 16 July 2026. No post-2022 amendment was located to the central boundary canons CIC 11, 16, 22, 24, 85, 129, 135, 199, 331, 336, 381, 391, 445–446, 455, 1075, 1141, 1254, 1259, 1290 or CCEO 1490, 1498, 1504, 1506, 1536, 1542. This is a recorded search result, not a timeless assurance. Promulgated law and applicable particular sources control.

11 Current Authorities: Who Teaches, Legislates, Interprets, and Judges?

11.1 Supreme authority

The Roman Pontiff possesses supreme, full, immediate, and universal ordinary power in the Church and can always exercise it freely (CIC c. 331; CCEO c. 43). The college of bishops is also the subject of supreme and full power, but only with its head and never without him (CIC c. 336; CCEO c. 49). Ecumenical conciliar decrees require the approval, confirmation, and promulgation defined by law (CIC cc. 337–341; CIC 330–367).

Supreme power remains bounded by the divine constitution and law of the Church. “Supreme” does not mean that the Pope can make a contradiction true, dissolve what divine law makes indissoluble, or convert an intrinsically unjust act into justice. It means there is no higher human ecclesiastical authority or appeal from a papal sentence or decree (CIC c. 333 §3).

11.2 Particular Churches and intermediate bodies

A diocesan bishop has ordinary, proper, and immediate power needed for his pastoral office except matters reserved by law. He governs with legislative, executive, and judicial power; he exercises legislative power personally and judicial power personally or through his tribunal (CIC cc. 381, 391; CIC 368–430). An eparchial bishop exercises corresponding authority within the Eastern canonical order.

Particular councils possess legislative power for their territory within universal law; their decrees require Apostolic See review before promulgation (CIC cc. 445–446). A Latin episcopal conference may issue general decrees only where universal law authorizes it or a special Apostolic See mandate grants it, with the voting, review, and promulgation conditions of c. 455 (CIC 431–459). Statements outside c. 455 do not thereby become legislation; their possible doctrinal authority is governed separately by CIC c. 753 and *Apostolos suos*, whose concluding norms require unanimity or a two-thirds plenary vote plus Apostolic See *recognitio* for authentic conference magisterium and exclude commissions from exercising it.

Eastern patriarchal and major-archiepiscopal synods possess genuine legislative and judicial authority for their Churches *sui iuris* (CCEO cc. 110, 152). They are not merely Eastern versions of Latin episcopal conferences. Synodal, patriarchal, eparchial, and common law must be classified on their own terms.

11.3 The Roman Curia assists; it is not an autonomous legislator

Praedicate Evangelium, effective 5 June 2022, governs the Roman Curia (text). Curial institutions assist the Roman Pontiff in his mission. Article 30 provides that a curial institution cannot issue laws or general decrees having the force of law, or derogate from universal law, except in particular cases with a specific papal grant and approval. Executive decrees and instructions remain subordinate to law.

Leo XIV’s General Regulations of the Roman Curia, effective 1 January 2026 *ad experimentum* for five years, implement this structure and regulate drafting, review, papal approval, executive acts, and recourse (official Italian). Current institutional analysis must therefore distinguish a dicastery’s competence, document genre, form of papal approval, promulgation, and intended juridical effect.

11.4 Interpretation and doctrinal competence

The Dicastery for Legislative Texts promotes knowledge and correct application of Latin and Eastern canon law, formulates authentic interpretations for specific papal approval, assists authorities, reviews certain normative texts, and studies legal gaps (*Praedicate Evangelium* arts. 175–182; official profile). Its formal authentic-interpretation register must be distinguished from explanatory notes or presidential responses.

The Dicastery for the Doctrine of the Faith safeguards doctrine concerning faith and morals and judges delicts reserved to it under proper norms (*Praedicate Evangelium* arts. 69–78; *Fidem servare*; text). A doctrinal declaration can authoritatively identify a moral or divine-law boundary. It does not follow that every proposition in it is a new penal canon or that every form of papal approval converts it into legislation. Genre and promulgation still control juridical effect.

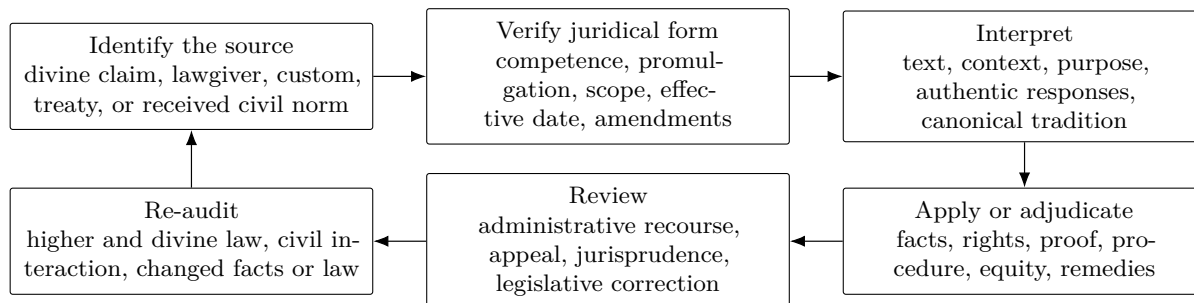
11.5 Tribunals and administrative justice

At first instance, the diocesan bishop is ordinarily the judge for cases not excepted by law, acting personally or through the judicial vicar and judges (CIC c. 1419). The Roman Rota ordinarily serves as a higher appellate tribunal at the Apostolic See and fosters unity of jurisprudence. The Apostolic Signatura is the supreme tribunal, supervises the administration of justice, and adjudicates specified recourses alleging violation of law by individual administrative acts (*Praedicate Evangelium* arts. 189–204).

The Signatura’s 2008 *Lex propria*, promulgated by *Antiqua ordinatione*, applies as amended by *Munus Tribunalis* in 2024. Judicial decisions can clarify law and carry persuasive or institutional weight, but a judgment is not thereby universal legislation. CIC c. 16 §3 ordinarily limits a judicial or administrative interpretation to the persons and matter decided; CIC c. 19 gives jurisprudence a role in filling nonpenal gaps.

Administrative recourse likewise distinguishes the merits of a pastoral dispute from whether an authority violated law or procedure. Written reasons, hearing affected persons, competence, notification, deadlines, suspension, hierarchical recourse, and Signatura review are positive-law means of serving justice. Invoking a divine purpose does not excuse procedural illegality.

11.6 A norm's institutional path



The diagram is deliberately circular. Application exposes ambiguity or injustice; recourse and jurisprudence may reveal a gap; legislation can change; and every new act requires renewed source classification. No office substitutes for the audit.

12 Civil Law, Concordats, the Holy See, and Vatican City State

12.1 Four realities that must not be collapsed

Reality	Juridical character	Principal function	Common category error
Catholic Church	A communion with a divinely received constitution and its own canonical order, comprising the Latin Church and Eastern Catholic Churches <i>sui iuris</i> .	Worship, teaching, sanctification, governance, apostolate, and salvation of souls.	Treating every Catholic institution as an organ of Vatican City State.
Holy See	The Roman Pontiff and, according to context, the central ecclesial authority; an international legal person with treaty and diplomatic capacity.	Supreme ecclesiastical governance and international representation of its mission.	Calling it a territorial state or identifying it with the Curia alone.
Roman Curia	Institutions assisting the Roman Pontiff under <i>Praedicate Evangelium</i> .	Doctrinal, legislative-text, diplomatic, administrative, economic, and judicial service within assigned competence.	Assuming every curial act is papal legislation.
Vatican City State	A distinct territorial civil order created in 1929 to secure the Holy See's visible independence.	Sovereign territorial government, public administration, criminal and civil justice, services, and international activity proper to the State.	Treating Vatican civil law as the universal canon law of the Church.

The same Roman Pontiff possesses supreme ecclesiastical authority and Vatican sovereign power, but the title, legal order, subjects, organs, and effects differ. An act must be classified by the capacity in which authority is exercised.

12.2 Civil law in the life of Catholics

Catholics ordinarily owe obedience to just civil authority; civil law need not be incorporated into canon law to bind them civilly. Moral obedience, civil validity, canonical effect, and civil enforcement remain distinct. A civil corporation associated with a diocese may be governed by state corporate law while the corresponding public juridic person is governed by canon law. A civil employment relationship, trust, property title, privacy rule, reporting duty, or court judgment can create civil effects without settling an ecclesiastical office or sacramental status.

The same facts can enter several forums. Misappropriation may be sin, canonical delict, breach of fiduciary duty, tort, and crime, each with different elements and remedies. Abuse reporting may trigger canonical investigation and civil duties. The updated *Vos estis lux mundi*, effective 30 April 2023, expressly preserves rights and obligations under state law, including reporting obligations (text). Canonical process does not displace civil justice, and civil findings do not automatically decide every canonical element.

12.3 Reception or “canonization” of civil law

CIC canon 22 states the general rule: civil laws to which Church law yields are observed in canon law with the same effects insofar as they are not contrary to divine law and canon law does not provide otherwise. CCEO c. 1504 supplies an Eastern counterpart. The technical shorthand “canonization of civil law” means canonical reception; it has no relation to declaring saints.

CIC c. 1290 receives territorial civil-law rules on contracts and their disposition, within ecclesiastical competence, subject to divine and canonical law (CIC 1254–1310). CCEO c. 1034 similarly receives civil contract norms, read with the general boundary in c. 1504. Canonical reception can save coordination and respect local legal expectations, but it is selective. A transaction may be civilly effective and canonically defective, a possibility CIC c. 1296 expressly contemplates.

12.4 Concordats and agreements

CIC c. 3 and CCEO c. 4 preserve agreements entered by the Apostolic See with nations or political societies notwithstanding contrary code provisions. Such agreements can address legal personality, appointment processes, education, chaplaincy, property, taxation, marriage effects, archives, or the Church’s public freedom. They are not a universal template; text, parties, ratification, territory, effective date, reservations, and implementing civil law control.

The Secretariat of State’s Section for Relations with States and International Organizations handles diplomatic and treaty relations and, under *Praedicate Evangelium* art. 49, deals with concordats and other agreements. A concordat coordinates legal orders; it does not make civil officials canon legislators or canon law automatically civil law.

12.5 Marriage as a two-order example

CIC c. 1059 says the marriage of Catholics is governed by divine and canon law, without prejudice to civil authority’s competence over merely civil effects. This sentence contains three layers. Marriage has natural and, for the baptized, sacramental dimensions; canonical law regulates capacity, form, proof, and ecclesiastical adjudication; civil law governs status and effects within the state. A civil divorce can end civil effects while not proving dissolution of a canonical bond. A canonical declaration of nullity determines ecclesiastical status and may receive civil effects only under the applicable state or treaty law.

This is neither mutual indifference nor automatic identity. The two forums may use different definitions, burdens, evidence rules, remedies, and consequences while dealing with the same persons and history.

12.6 The Holy See and Vatican City State

The Lateran Treaty of 1929 recognizes Holy See sovereignty in the international realm and creates Vatican City for the special purpose of securing its independence (arts. 2–4; English text; official Italian archive). The State and Holy See have distinct international personalities even though united in the person of the Supreme Pontiff.

The Vatican Fundamental Law issued 13 May 2023 and effective 7 June 2023 affirms the Pontiff's fullness of legislative, executive, and judicial sovereign power while entrusting ordinary functions to defined state organs. The Pontifical Commission ordinarily exercises legislative function; the Governorate exercises executive function; state judicial bodies act in the Pontiff's name (official Italian PDF). A 2025 papal act on the composition and presidency of the Pontifical Commission for Vatican City State amended article 8, no. 1, concerning Commission membership.

Vatican Law N. LXXI on sources of law, effective 1 January 2009, recognizes the canonical order as the first normative source and first interpretive criterion. Vatican fundamental and enacted laws, international law and agreements, and defined supplementary reception of Italian law form the civil system, with limits including divine law, general principles of canon law, and the Lateran arrangements (official publication). Canon law's privileged place does not collapse the Vatican civil forum into a universal Church tribunal.

12.7 The practical conflict-of-orders checklist

When civil and ecclesiastical law meet, identify:

1. the civil state, ecclesiastical jurisdiction, Church *sui iuris*, and persons involved;
2. the exact civil and canonical juridic persons, offices, assets, or statuses;
3. whether canon law directly governs, refers to civil law, or merely expects civil-law compliance;
4. any concordat, treaty, recognized autonomy, corporate instrument, or choice-of-law rule;
5. whether the relevant effect is moral, canonical, civil, sacramental, administrative, penal, or evidentiary;
6. whether divine law or a contrary canon limits reception;
7. which authority and forum can give an enforceable decision; and
8. current law, amendments, time limits, reporting duties, and available parallel remedies.

This checklist is intentionally jurisdiction-first. General theology cannot replace a conflict-of-laws analysis, and a civil lawyer's assumption about "the Vatican" cannot replace identification of the actual ecclesiastical entity.

13 Applied Dossiers: How the Layers Work Together

These examples are classification exercises, not opinions about pending cases. Each shows why the same subject can carry natural, revealed, ecclesiastical-positive, and civil-positive norms without those norms becoming identical.

13.1 Dossier I: intentional killing and penal law

The basic wrong of intentionally attacking innocent human life belongs to natural moral law. The command against murder is also positively revealed in the Decalogue and deepened by biblical teaching. Civil criminal law and canon law can then define offenses, jurisdiction, imputability, defenses, procedure, proof, prescription, and penalties.

A naturally grave wrong is not automatically a canonical delict under any imaginable wording. In Latin canon law, punishment ordinarily requires violation of a penal law or precept; CIC c. 1399 supplies a narrowly conditioned general norm for otherwise untypified external violations of divine or canon law where special gravity and urgent need to prevent or repair scandal are present. External imputability, jurisdiction, and the safeguards of the current penal order must still be proved; the Eastern penal analysis must be made under the CCEO's distinct text. Civil definitions can also differ. Positive legality protects persons precisely because moral outrage does not supply every juridical element.

13.2 Dossier II: marriage and dispensability

Marriage is rooted in the nature of the human person and receives revealed clarification; among the baptized, a valid marriage is a sacrament (CIC cc. 1055–1056). Divine law can prohibit or invalidate marriage; only supreme ecclesiastical authority authentically declares such cases and establishes other impediments for the baptized. Canon law also establishes form, preparation, records, tribunal competence, and process.

The source classification changes dispensability. A competent authority can dispense certain ecclesiastical impediments for a just cause within the law; it cannot dispense a divine-law impediment. A procedural rule can be reformed without changing the nature of marriage. A tribunal does not dissolve a bond by declaring nullity; it judges whether the alleged bond validly arose. The civil state separately regulates civil capacity, licensing, property, support, custody, and dissolution of civil effects.

13.3 Dossier III: worship, Sunday, and ecclesiastical determination

The duty to worship God is naturally and divinely grounded. The Sabbath command is positively revealed within the covenant, and the Christian celebration of the Lord’s Day belongs to apostolic and ecclesial tradition. Canon law determines holy days, Mass obligation, the relevant time period, excuses, commutation, and dispensations (CIC cc. 1245–1248; text).

A competent dispensation from an ecclesiastical obligation does not dispense a person from every duty to worship God. Conversely, the natural duty alone does not specify every feast, calendar, territorial transfer, anticipated celebration, or canonical excuse. Theology supplies the end; positive ecclesiastical law coordinates the community’s concrete observance.

13.4 Dossier IV: property and contracts

Natural justice requires respect for persons, promises, ownership ordered to the common destination of goods, restitution, and protection against fraud. Human law determines forms of ownership, registration, capacity, fiduciary duties, contracts, remedies, insolvency, and limitation periods. Canon law recognizes acquisition by every just natural or positive-law means permitted to others (CIC c. 1259) and receives defined civil contract law through c. 1290 while adding canonical controls for ecclesiastical goods.

Suppose a public juridic person sells stable patrimony. Civil law may recognize the deed; canon law may require valuation, consultation, and permission for valid alienation. Failure in one order does not mechanically answer the other. CIC c. 1296 directs the competent ecclesiastical authority to consider whether and how to vindicate Church rights where an alienation is civilly valid but canonically invalid. This is legal pluralism in operation.

13.5 Dossier V: religious freedom

The person’s dignity and social nature ground immunity from religious coercion. Revelation illuminates the dignity of faith’s free response. *Dignitatis humanae* authoritatively teaches the right, and civil constitutional law gives it enforceable form through limits on officials, equal protection, corporate freedom, remedies, and procedures.

The civil right protects persons in error as persons; it is not a metaphysical “right of error.” A state may recognize a religious community specially only while protecting the freedom and equality of all. Positive law must define neutral procedures and just public-order limits, but it cannot make majority dislike the measure of another’s dignity.

13.6 Dossier VI: an enactment alleged to be unjust

The allegation should proceed in disciplined stages:

Stage	Question	Evidence required	Do not assume
1. Identify	What exact act is commanded, forbidden, permitted, funded, or penalized?	Authoritative text, jurisdiction, effective date, interpretation, facts.	A headline, summary, or political characterization is the law.
2. Classify	What natural good, revealed norm, right, authority, and positive-law purpose are implicated?	Moral reasoning, authoritative teaching, legislative record, competent commentary.	Labeling a claim “divine” supplies the missing argument.
3. Distinguish effects	Is the issue moral obligation, legal validity, liceity, enforceability, cooperation, or penalty?	Governing constitutional, civil, canonical, and moral sources.	Moral defect automatically nullifies every civil effect or removes every risk.
4. Examine participation	What would this person actually do, intend, enable, or appear to endorse?	Role, causal distance, alternatives, duress, scandal, proportional reasons.	Every material association is formal cooperation, or every remote act is harmless.
5. Seek lawful remedy	Is interpretation, exemption, appeal, recourse, litigation, amendment, objection, or refusal available?	Procedures, deadlines, counsel, competent authority.	Private noncompliance is the first or only faithful response.
6. Protect persons	Who bears the cost of action or refusal, especially vulnerable third parties?	Concrete impact and duties of restitution, notice, continuity, and safety.	A correct abstract principle excuses reckless implementation.

Where an enactment directly commands grave evil, obedience to God sets an absolute limit. Many cases are harder: the enactment may be partly unjust; the actor’s task may be remote or independently good; refusal may expose others; or incremental reform may reduce harm. *Evangelium vitae* 73–74 demonstrates why principled opposition and prudential discrimination belong together.

13.7 Dossier VII: ecclesiastical discipline said to be “only human”

A Catholic identifies a disciplinary canon as ecclesiastical positive law and concludes that it may be ignored. The first premise may be right; the conclusion is not. Competent human authority can create real obligations within a community. The correct questions are whether the law is in force, binds this person, admits an exception or dispensation, has been authentically interpreted, and provides a remedy.

If the rule exceeds competence or contradicts higher law, the legal order supplies interpretation and recourse. If it is burdensome but lawful, mutability means the legislator can reform it, not that each subject may legislate privately. “Merely ecclesiastical” marks the source and possibility of dispensation; it is not a synonym for optional.

13.8 Dossier VIII: a canon said to be “divine”

The reverse mistake is to find a rule in the code and declare it immutable. The analyst must isolate the proposition. Does the canon expressly declare a divine norm? Is the claim supported by Scripture, tradition, and authoritative teaching? Which parts are protective procedure, legal presumption, definition, or jurisdictional allocation? Has the positive formulation changed historically while the underlying principle remained?

The burden rises with the claim. Calling a mutable discipline divine can obstruct legitimate reform and falsely bind conscience. Calling a divine norm merely disciplinary can invite invalid action and false expectations of dispensation. Source audit is therefore a pastoral duty as well as a technical one.

14 Hard Questions, Objections, and Recurrent Misuses

14.1 If all just law ultimately comes from God, is every just statute divine law?

No. Providence and the divine source of authority do not erase secondary causality. A city council can make a just traffic determination through human prudence and competence. It is human positive law, even though its authority and moral purpose exist within divine order. “From God” can name ultimate dependence; “divine positive law” names a norm freely given by God in revelation.

14.2 Is natural law a body of ideas humans invent from nature?

Not in the classical Catholic account. Human beings discover, formulate, contest, and apply natural-law principles through reason. Their formulations can be incomplete or wrong. The norm’s authority is not created by consensus, yet social experience and dialogue can improve knowledge of it. This is why “human natural law” is best treated as shorthand for human apprehension, not a distinct source.

14.3 Does “positive” mean arbitrary or morally good?

Neither. It means posited, laid down, or authoritatively determined. Divine positive law is wise because its author is God. Human positive law should be rational and just but can fail. A valid procedural rule can be positive and morally good; an unjust enactment can still be identifiable as positive law within a legal system while lacking moral authority.

14.4 Is positive law the same as legal positivism?

No. Every serious legal tradition recognizes enacted law. Legal positivism is a family of modern theories about the social sources and identification of law and the conceptual relation between law and morality. One can use a source-based test to identify a statute without concluding it is just. Catholic natural-law theory objects when social fact is made the complete measure of moral obligation, but it should engage sophisticated positivists rather than the caricature “whatever the ruler commands is right.”

14.5 Can natural law change?

First principles and basic goods do not change with fashion. Human knowledge, social conditions, factual premises, derived conclusions, institutional embodiments, and applications can change. A rule once defended as natural may later be shown to have mixed a true principle with false anthropology or contingent custom. The correct response is neither historical relativism nor denial of development, but a transparent reconstruction of the inference.

14.6 Can divine positive law change?

Divine positive law cannot be repealed or dispensed by human authority. God can institute distinct covenantal economies, and Christ authoritatively fulfills the Old Law; ceremonial and judicial precepts therefore cease in their former juridical form without a creature repealing divine law. The Old Law also contains moral precepts with enduring natural content, while the New Law is principally grace. One must identify which divine norm, covenantal economy, subject, and mode of fulfillment is at issue.

14.7 Can the Pope dispense divine law?

Not as though divine law were a merely ecclesiastical statute. Papal authority can authentically declare, interpret within the Church’s competence, apply, and protect divine law; it can dispense ecclesiastical law and sometimes

determine facts or conditions on which a divine-law consequence depends. The distinction between dissolving a human determination and judging that a divine bond never arose is decisive.

14.8 If an unjust law is “no law,” may anyone ignore it?

The maxim expresses law’s defect relative to reason and justice. A concrete duty of resistance depends on the gravity and certainty of injustice, the act demanded, cooperation, rights of others, scandal, public order, available remedies, and the positive system’s consequences. Some commands must be refused. Other defective laws may still call for compliance to prevent greater disorder while reform is sought. Private conviction does not decide juridical invalidity in every forum.

14.9 Does the Church accept separation of Church and state?

Only after the meaning is specified. She affirms distinct offices, proper institutional autonomy, religious immunity from coercion, and legitimate pluralism; she permits different constitutional arrangements, including disestablishment. She rejects state control of the Church, exclusion of religious communities from public freedom, and the claim that civil law is morally independent of natural and divine law. Vatican II does not prescribe one establishment clause.

14.10 Is canon law merely theology with penalties?

No. Canon law is a juridical order with persons, offices, competence, rights, acts, procedures, proof, remedies, sanctions, and interpretation. Theology supplies indispensable truths about the Church’s nature and end, but a theological argument does not automatically create a justiciable norm. Conversely, legal technique detached from ecclesiology can mistake administration for the Church’s purpose.

14.11 Is everything in the code ecclesiastical positive law?

The code as a promulgated legislative instrument is human canonical law, but its propositions have different sources. It declares divine institutions and norms, enacts ecclesiastical rules, receives civil law, preserves agreements, recognizes custom, and allocates judicial and administrative authority. Classification must occur proposition by proposition.

14.12 Does a doctrinal declaration automatically change canon law?

Not necessarily. It may clarify the divine or moral premise by which law must be read and can create an urgent need for legislation. A canonical amendment still requires competent juridical form unless the same act legislates and is promulgated accordingly. Approval of a doctrinal text, authentic interpretation of a canon, and legislative amendment are different acts.

14.13 Does religious freedom mean a right to believe falsehood?

The civil right concerns immunity from coercion of persons and communities within just limits. It does not declare propositions true or release persons or societies from moral duty toward truth. Positive constitutional protection is grounded in the dignity and nature of the human person, not in subjective correctness or indifference to truth; the free character of faith confirms why coercion is unfitting but is not the civil right’s sole ground.

14.14 Does civil recognition create natural rights?

It creates positive remedies and institutional form, not the underlying dignity. A constitution can recognize, protect, specify, or violate a naturally grounded right. The difference explains both why recognition is urgently necessary and why a majority cannot justly erase the underlying claim by amendment.

14.15 Can a naturally grounded right be limited?

Exercise of rights occurs in community and can be regulated for the rights of others and just public order. A limit must be competent, proportionate, nondiscriminatory, and ordered to a genuine common good. The underlying right and its every possible exercise are not identical. “Natural” does not mean unregulated; “regulated” does not mean created by the regulator.

14.16 What is the single most common analytical failure?

Moving from content to competence without proving the bridge: “this promotes a natural good, therefore this authority may enact any measure”; or “this rule is ecclesiastical, therefore this official may dispense it”; or “this command is unjust, therefore it is legally void.” Source, jurisdiction, form, proportionality, and remedy must be established separately.

15 Timeline and a Method for Reading Legal Claims

15.1 Selected milestones

Date	Witness	Contribution and limit
c. 441 BC	Sophocles, <i>Antigone</i>	Dramatic conflict between mortal decree and unwritten divine norm; not a natural-law system.
4th c. BC	Plato and Aristotle	Nature/convention debate; rational order; natural and legal justice; equity and the limits of general rules.
3rd–1st c. BC	Stoicism and Cicero	Common rational law joins nature and divine governance; enactment judged by right reason.
2nd c. BC–3rd c. AD	Roman jurists	Civil, gentium, natural, praetorian, written and unwritten law; formal sources and concrete remedies; no single unified taxonomy.
1st c.	New Testament	Natural moral knowledge, revealed covenant fulfilled in Christ, ecclesial authority, civil obedience, and the prior claim of God.
4th–5th c.	Augustine	Eternal measure of temporal law and use of earthly peace; also later defense of coercive correction, preserving a historical tension.
494	Gelasius I	Distinct sacred authority and royal power within one Christian moral world; not modern privatization.
533	Justinian’s <i>Digest</i> and <i>Institutes</i>	Authoritative compilation preserves heterogeneous Roman juristic schemes, positive sources, and concrete institutions for later civil and canonical reception.
c. 1140	Gratian	Natural law and custom; divine and human law; biblical and Roman categories placed into canonical concord.
c. 1164	Rufinus	Rational-human natural law, gentium, revealed restoration, and positive ecclesiastical determinations refined by a decretist.
1265–1274	Aquinas	Eternal, natural, human, and revealed divine law; conclusion/determination; unjust law; custom, change, dispensation, and equity.
1547–1563	Council of Trent	Affirms ecclesiastical precepts and competence to establish matrimonial impediments; <i>Tametsi</i> exemplifies a mutable positive disciplinary determination.
1612	Suárez, <i>De legibus</i>	Comprehensive early-modern synthesis of lawgiver, obligation, natural and human law, custom, privilege, and divine law.

Date	Witness	Contribution and limit
1864–1888	Pius IX and Leo XIII	Rejection of state moral autonomy and indifferentism; distinct powers and concord in a confessional-state horizon.
1917	First Latin code	Systematic codification of mutable discipline while expressly distinguishing natural and divine-positive law. Superseded in 1983.
1929	Lateran Treaty	International settlement and Vatican City State secure Holy See independence through a distinct territorial order.
1953	Pius XII, <i>Ci riesce</i>	Prudential toleration and non-repression for a higher common good; bridge to, but not identity with, a civil right of immunity.
1963–1965	<i>Pacem in terris</i> ; Vatican II	Personal rights, legitimate temporal autonomy, Church–political independence and cooperation, and dignity-grounded religious immunity.
1983	CIC	Current Latin code, as amended; distinguishes merely ecclesiastical law, divine-law limits, civil-law reception, and competent governance.
1990–1991	CCEO	Common code for Eastern Catholic Churches, effective 1991, preserving Eastern sources and synodal structures.
1993–2009	<i>Veritatis splendor</i> ; ITC	Participated theonomy, embodied reason, and renewed natural-law method; the ITC text is expert theology, not Magisterium.
2022	<i>Praedicate Evangelium</i>	Current Roman Curia constitution: assists the Pope, allocates competencies, and limits autonomous curial legislation.
2023–2026	Vatican and curial updates	New Vatican Fundamental Law, curial regulations, tribunal and competence amendments; proof that current law requires an overlay beyond base codes.

15.2 The source-first reading sequence

For any claim about law, proceed in this order:

1. **Quote or isolate the proposition.** Do not classify an entire document when only one clause is disputed.
2. **Identify genre and author.** Scripture, philosophical dialogue, juristic excerpt, conciliar canon, papal teaching, statute, rescript, judgment, and commentary do not establish the same thing.
3. **Establish text and translation.** Use the controlling language, disclose fragmentary transmission, and distinguish convenient translations from authoritative texts.
4. **Locate jurisdiction and date.** Universal, common, particular, proper, territorial, personal, current, historical, superseded, or merely proposed?
5. **Classify source and mode.** Natural rational ground, divine revelation, human enactment, custom, reception, agreement, judgment, or a mixture?
6. **Determine rank and competence.** Who may legislate, interpret, dispense, execute, or adjudicate, and what approval or promulgation is required?
7. **Separate effects.** Moral obligation, canonical or civil validity, liceity, enforceability, penalty, remedy, and evidentiary effect.
8. **Check development and conflict.** Later amendments, authentic interpretations, higher law, parallel civil order, doctrinal development, and changed facts.
9. **State confidence and limits.** Distinguish verified conclusion, reasonable synthesis, disputed interpretation, and unverified lead.

15.3 A compact notation for research records

A research note can record each proposition as:

Claim → **source/author** → **genre** → **controlling text/translation** → **jurisdiction and date** → **natural/revealed/positive classification** → **competent interpreter/forum** → **effect** → **currentness and confidence**.

This notation prevents the most common drift: a historical source becomes current law, a teaching becomes a penalty, a local judgment becomes universal legislation, or a moral conclusion becomes an unproved civil remedy.

15.4 Where to begin by reader type

Reader	Begin with	Then verify
Philosopher or theologian	Sections 2–9: vocabulary, Greek/Roman sources, Scripture, Aquinas, and modern synthesis.	Sections 10–12 for the institutional form that prevents abstract categories from floating free of jurisdiction.
Canonist	Sections 1–2 and 10–12: legal scope, taxonomy, sources, authorities, civil reception.	Sections 3–9 for the philosophical and historical meanings behind code terms.
Civil lawyer	Sections 2–5, 8, and 11–12: positive law, Roman inheritance, separation meanings, authority, and multiple legal orders.	CIC cc. 3, 11, 16–24, 85, 1290; applicable concordat; actual ecclesiastical juridic person.
Pastor or formator	Sections 1–3, 8, and 13–14: motivation, conscience, applied dossiers, and misuses.	The current code, particular law, competent ordinary, and professional advice before giving a case-specific answer.
Historian	Sections 3–9 and the research matrices.	Source transmission, edition, translation, authority at the time, later reception, and avoidance of retrospective categories.

16 Conclusion: Law beneath Truth and in the Hands of Responsible Authority

Natural and positive, divine and human law are not rival slogans. They name distinct relations among truth, authority, reason, revelation, community, and juridical form. Their proper coordination avoids two opposite failures.

One failure is voluntarism: because an authorized institution enacted a rule, the rule is treated as the source of its own justice. That account cannot explain martyrdom, conscientious resistance, inherent dignity, or why a legal order should reform its own injustice. The other failure is anti-juridicism: because natural or divine truth is higher, positive law, procedure, office, evidence, jurisdiction, and remedy are treated as dispensable. That account cannot sustain common action or protect persons against the confident interpreter.

The classical Catholic synthesis rejects both. Eternal law is the source and measure. Natural law is divine in origin and rationally participated, not a secret confessional code. Divine positive law is revealed in salvation history and fulfilled in Christ, not raw command. Human positive law is necessary and dignified work: authority reasons from common goods, determines what principles leave open, promulgates, hears, judges, corrects, and sometimes changes. Ecclesiastical positive law serves a Church whose constitution and end it did not invent. Civil positive law serves temporal peace and justice within a moral order it does not create.

The supposed fourth cell, “human natural law,” therefore teaches its best lesson by failing as an independent species. Human beings really know and apply natural law; judges and legislators can recognize it; cultures can deepen or

obscure it. Yet the knower is not the author of the truth known. A positive enactment embodying natural law has two relevant descriptions: its content is measured by natural justice, and its juridical force is given human form. Neither description cancels the other.

The Church's history of civil and ecclesiastical differentiation follows the same logic. Gelasian offices, medieval jurisdictions, concordats, Vatican II's autonomy and religious freedom, and contemporary canonical and civil orders do not create a morally empty wall. They distribute competence so that spiritual and temporal goods are served without usurpation. Vatican II's protection of persons and communities from religious coercion is a real juridical development, not indifference to truth. The rejection of a positive law morally sealed off from divine and natural order remains constant.

Current canon law makes the distinctions concrete. Divine law defeats contrary custom, bounds received civil law, and lies outside the object of dispensation. Merely ecclesiastical law binds through legitimate authority yet can be reformed or dispensed within competence. Popes, bishops, synods, councils, conferences, dicasteries, tribunals, and civil authorities do not possess interchangeable powers. Text, promulgation, jurisdiction, interpretation, procedure, and remedy matter because justice is owed to persons, not merely to correct abstractions.

The durable discipline is therefore a sequence of questions: What exact norm? From what source? Known how? Binding whom? Under which jurisdiction? Interpreted by whom? Mutable or dispensable by what competence? With what effect in conscience, Church, and state? What remedy if it conflicts with higher law? A robust answer does not weaken moral conviction. It gives conviction a truthful juridical form.

Final synthesis

Divine natural law supplies a rational moral measure; divine positive law supplies revealed direction toward humanity's supernatural end; human positive law supplies determinate common order in Church and polity. The three operate together only when reason remains answerable to truth, authority remains answerable to competence and common good, and higher-law claims remain answerable to disciplined proof.

17 Sources and Further Reading

Online sources were last checked 16 July 2026 unless the research audit records another date. Links point to the exact witness used where possible. Short phrases are quoted only where the wording itself matters; the study otherwise paraphrases. Official Latin controls for the current codes. Ancient web translations are reading aids and are not represented as critical editions.

17.1 Scripture

- United States Conference of Catholic Bishops, New American Bible, Revised Edition: Jeremiah 31; Matthew 5; Matthew 22; John 13; Acts 5; Acts 15; Romans 2; Romans 13; 1 Corinthians 5; and 1 Peter 2.

17.2 Greek philosophy and Stoic witnesses

- Sophocles, *Antigone* 441–460, Perseus Greek and English witness; R. C. Jebb's commentary at line 454.
- Plato, *Gorgias* 482e–484c; *Laws* I; and *Laws* X, Perseus witnesses.
- Aristotle, *Nicomachean Ethics* V.7; *Rhetoric* I.13; and *Politics* III.16, Perseus witnesses.
- Diogenes Laertius, *Lives of Eminent Philosophers* VII.87–89, reporting Stoic doctrine.
- Cleanthes, *Hymn to Zeus*, lines 1–5, 12–26, and 31–39; Greek witness in the Bibliotheca Augustana; Johan C. Thom, *Cleanthes' Hymn to Zeus: Text, Translation, and Commentary* (Tübingen: Mohr Siebeck, 2006).
- Chrysippus, *On Law*, fragment preserved by Marcian at Digest 1.3.2 (SVF III.314).

17.3 Roman philosophy and jurisprudence

- Cicero, *De legibus* I and II, Latin Library witness; *De re publica* III.33, fragment transmitted at Lactantius, *Divine Institutes* VI.8.6–9. Modern translation control: Cicero, *The Republic and The Laws*, trans. Niall Rudd (Oxford: Oxford University Press, 1998).
- Gaius, *Institutes* 1.1–7, Latin text.
- Justinian, *Digest* 1.1, 1.3, 1.5, and 1.8; 44.7; and 50.17, Grenoble Roman Law collection; modern translation control: *The Digest of Justinian*, trans. Alan Watson, rev. English-language ed., 2 vols. (Philadelphia: University of Pennsylvania Press, 1998).
- Justinian, *Institutes* 1.1–1.3, Latin text based on Krueger; J. B. Moyle, English translation, used only as an older aid.

17.4 Patristic, medieval, and scholastic sources

- *Didache*, especially chs. 1–5 and 15; *Epistle to Diognetus* 5; Tertullian, *Apology* 33–34; Lactantius, *Epitome of the Divine Institutes* 54.
- Augustine, *Contra Faustum* XXII.27; *City of God* XIX.17; *De libero arbitrio* I.5–6; Letter 93, 16–17; and Letter 185, 23–26.
- Gelasius I, *Famulae pietatis* (494), received at Gratian D.96 c.10, critical Latin; compare D.96 c.6.
- Gratian, *Decretum*: D.1 dictum before c.1; D.1 c.1; D.1 c.6; D.1 c.7; D.1 c.8; D.1 c.9; and D.4 c.2. These links present Friedberg’s 1879 text without its critical apparatus. Also Anders Winroth, ed., *Decretum Gratiani*, first recension, edition in progress (version 21 November 2025).
- Rufinus, *Summa Decretorum*, ed. Heinrich Singer (Paderborn, 1902), 4–10, public scan.
- Thomas Aquinas, *Summa theologiae* I–II, qq. 90, 91, 93, 94, 95, 96, and 97; II–II q. 120 on equity; I–II qq. 98–108 on Old and New Law. Latin–English comparison: Aquinas.cc.
- Francisco Suárez, *De legibus ac Deo legislatore*, especially I.5–12; II; III–IV; VII on custom; VIII on privilege; and IX–X on Old and New divine law, in *Opera omnia*, vols. 5–6 (Paris: Vivès, 1856). Historical source; translations and book numbering should be checked before quotation.

17.5 Councils, papal teaching, and catechetical synthesis

- Council of Trent, Session VII, canon 8 on baptism (3 March 1547), and Session XXIV, canon 4 on matrimony and decree *Tametsi* (11 November 1563), convenient English witnesses at Session VII and Session XXIV; Latin conciliar text controls.
- First Vatican Council, *Dei Filius*, chs. 2 and 4 (24 April 1870), official Latin.
- Pius IX, *Quanta cura* and appended *Syllabus* (8 December 1864), official Latin.
- Leo XIII, *Immortale Dei* (1 November 1885) and *Libertas praestantissimum* (20 June 1888).
- Pius XI, *Mit brennender Sorge* 29–31 (14 March 1937).
- Pius XII, *Summi Pontificatus* (20 October 1939) and *Ci riesce* (6 December 1953).
- John XXIII, *Pacem in terris* (11 April 1963).
- Second Vatican Council, *Dignitatis humanae* (7 December 1965) and *Gaudium et spes* (7 December 1965), especially nn. 16, 36, 42–43, and 74–76.
- *Catechism of the Catholic Church* 1950–1986, moral law; 1954–1960, natural law; 2234–2246, civil authority and Church.
- John Paul II, *Veritatis splendor* (6 August 1993), especially nn. 35–64 and 79–83; *Evangelium vitae* (25 March 1995), especially nn. 68–74.
- International Theological Commission, *In Search of a Universal Ethic: A New Look at the Natural Law* (2009). Expert theological study, not an act of the Magisterium.

17.6 Current canon law and ecclesiastical institutions

- Benedict XV, *Providentissima Mater* (27 May 1917), promulgating the first Latin code; 1917 CIC c. 6, no. 6, in the official AAS code volume, preserving unincorporated natural and divine-positive law while abrogating other disciplinary law within its rule.
- John Paul II, *Sacrae disciplinae leges* (25 January 1983), promulgating the CIC; official Latin CIC index; Holy See English index.
- CIC primary loci: cc. 7–22; 23–28; 29–34; 35–93; 129–144; 330–367; 368–430; 431–459; 747–755; 998–1165; 1254–1310; and 1400–1500.
- John Paul II, *Sacri canones* (18 October 1990), promulgating the CCEO; official Latin cc. 1–409, 410–1006, and 1007–1546. Canon Law Society of America, *Code of Canons of the Eastern Churches: Latin–English Edition* (Washington, DC: CLSA, 2001), translation aid.
- Francis, *Praedicate Evangelium* (19 March 2022), effective 5 June 2022.
- John Paul II, *Apostolos suos*, especially concluding arts. 1–4 (21 May 1998), on episcopal-conference doctrinal declarations.
- Dicastery for Legislative Texts, official authentic-interpretation register and official profile.
- Francis, *Fidem servare* (11 February 2022); Congregation for the Doctrine of the Faith, revised norms on delicts reserved to the Congregation (2021).
- Benedict XVI, *Antiqua ordinatione* and the Apostolic Signatura’s annexed *Lex propria* (21 June 2008), as amended by Francis, *Munus Tribunalis* (28 February 2024).
- Leo XIV, General Regulations of the Roman Curia (23 November 2025), effective 1 January 2026 *ad experimentum* for five years.
- Holy See, Codes of Canon Law and amendment archive; Francis, *Pascite gregem Dei* (2021), *Recognitum Librum VI* (2022), *Competentias quasdam decernere* (2022), *Vocare peccatores* (2023), and *Expedit ut iura* (2023); Leo XIV, rescript concerning CIC c. 699 §2 (28 May 2026).

17.7 Holy See, treaties, and Vatican City State

- Lateran Treaty (11 February 1929), English text; official Italian archive.
- Vatican City State, Fundamental Law of 13 May 2023, effective 7 June 2023; official explanatory account.
- Vatican City State, Law N. LXXI, Law on the Sources of Law (1 October 2008), effective 1 January 2009.
- Leo XIV, apostolic letter on the composition and presidency of the Pontifical Commission for Vatican City State (19 November 2025), amending Fundamental Law art. 8, no. 1.
- Holy See, general information on the Holy See and Vatican City State; Vatican City State, diplomatic relations and judicial function.

17.8 Historical and methodological scholarship used as controls

These sources assist historical interpretation; they do not establish present canon law.

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- René Brouwer, “The Normativity of Law in Nature Revisited: Natural Law in Late Hellenistic Thought,” *Ancient Philosophy* 42 (2022).
- Péter Lautner, “Aristotle and Natural Justice,” *Pázmány Law Review* 8, no. 1 (2021): 57–65.
- Caroline Humfress, “Natural Law and Casuistic Reasoning in Roman Jurisprudence,” in *State and Nature: Studies in Ancient and Medieval Philosophy*, ed. Peter Adamson and Christof Rapp (Berlin: De Gruyter, 2021), 247–266.

- Charles Donahue Jr., “Roman Law: Natural Law, the Law of Nations, and Civil Law,” lecture outline, Ames Foundation.
- Anders Winroth, *The Making of Gratian’s Decretum* (Cambridge: Cambridge University Press, 2000), and “Gratian and His Book,” *Oxford Journal of Law and Religion* 10 (2021): 1–15.
- Brian Tierney, *The Idea of Natural Rights: Studies on Natural Rights, Natural Law, and Church Law, 1150–1625* (Grand Rapids: Eerdmans, 1997).
- R. H. Helmholz, *Natural Law in Court: A History of Legal Theory in Practice* (Cambridge, MA: Harvard University Press, 2015).
- Kenneth Pennington, *The Prince and the Law, 1200–1600: Sovereignty and Rights in the Western Legal Tradition* (Berkeley: University of California Press, 1993).
- John Courtney Murray, *We Hold These Truths: Catholic Reflections on the American Proposition* (New York: Sheed and Ward, 1960), read historically rather than as a substitute for the conciliar text.

17.9 Further reading—not controlling authority

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- John Finnis, *Natural Law and Natural Rights*, 2nd ed. (Oxford: Oxford University Press, 2011).
- Jean Porter, *Nature as Reason: A Thomistic Theory of the Natural Law* (Grand Rapids: Eerdmans, 2005).
- Russell Hittinger, *The First Grace: Rediscovering the Natural Law in a Post-Christian World* (Wilmington, DE: ISI Books, 2003).
- James A. Coriden, Thomas J. Green, and Donald E. Heintschel, eds., *The Code of Canon Law: A Text and Commentary* (New York: Paulist Press, 1985); John P. Beal, James A. Coriden, and Thomas J. Green, eds., *New Commentary on the Code of Canon Law* (New York: Paulist Press, 2000). Commentary aids; verify later amendments and controlling law.
- Ladislav Orsy, *Theology and Canon Law: New Horizons for Legislation and Interpretation* (Collegeville, MN: Liturgical Press, 1992).

17.10 Rights and evidence boundary

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